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Loudoun County Board of Supervisors, FY 2027 Budget Work Session, Monday, March 9, 2026

Date Monday, March 9, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 4h 22m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8135>
 - Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8135>
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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:07:13] I did. I sent that to you this morning, though. Yeah. It's the same thing that I sent this morning. Yeah. Well, good evening, supervisors. Good evening, staff. And good evening, Loudon. I'd like to call to order the March 9th, 2026 Loudon County Board of Supervisors Budget Work Session.

[00:07:32] I would like to stress the importance of this budget work session as the time for us to offer changes, additions, and deletions to the budget. Board members should try to offer all desired amendments and ask questions that you have during these work sessions. Please only offer motions that you intend to support so that we can be efficient with our limited time.

[00:07:51] In addition, if you'd like to offer motions on items that do not appear in the proposed budget, please work with staff on that so we know that your motion is accurate and accomplishes your intended result. When we get your final vote on April 7, staff will not be able to make large changes to the budget during the meeting, and the vote on the budget could be delayed if there are substantive changes that were not discussed or voted on during the work session before we start well i i ask everybody to please join me in the pledge of allegiance

[00:08:40] it looks like we are all here except mr kirchner i know he's coming i think he's probably just running um a little late sometimes he has to go to fairfax and so i'm sure he will be here very shortly good evening staff good evening madam chair how are you all today i'm doing great mr hamstreet has an update

before i share mine mr hamstreet has an update all right mr hamstreet yeah thank you madam chair i just want to start by acknowledging that uh we sent out an attachment with the board packet for this evening that we should not have sent out as staff so we had

[00:09:19] received some information from a board office that was put together by the board office we had attached it to the packet we should not have done that so that is my mistake I apologize for that we have removed that information from the electronic packet that's out there now and we I'll do a better job going forward making sure that those kinds of things are vetted before they go out so just want to apologize the board for that and not do that again thank you mr.

[00:09:49] All of us we have we're pretty busy people and mistakes are made and it happens. Thank you so much. How's it going? Very well. Thank you. We are excited to be here before I did. Are you excited? We are excited to continue with the budget process. Let's go with that.

[00:10:06] Before you is the Tote Board which captures two straw votes that the board took at the end of the work session on Thursday. The Tote Board remains at the proposed tax rates with an available balance of \$79,973.

[00:10:24] Also included in your packet, both one that was distributed on Friday as well as a supplemental packet distribution today are as follows. The latest response packet for questions received related to the county budget as well as the Loudoun County Public Schools.

[00:10:44] we still have some remaining County budget questions that staff is working through and intend to have those formally distributed as part of Wednesday's packet. In addition, we have item three, which is the Finance Committee's recommendations on the FY27 through FY32 capital improvement program.

[00:11:05] And we also have in the supplemental today, an item on the sidewalk and trails program, seeking the board's policy clarifications on a few items that have come up during budget deliberations and we also distributed a memo which captures the motion that the school board adopted last thursday related to school resource officers and that concludes my update thank you very much supervisors a couple things um one you will see that i did change the order of the departments coming before us tonight. I do think the sheriff's department tonight may take a little

[00:11:43] longer and there's no reason to keep the other departments here that I believe will go much more quickly. So I changed the order slightly. I will also say supervisors, I am putting us in a committee as a whole for 45 minutes after the sheriff does his presentation.

[00:12:02] We do not have to use all 45 minutes. That is not required. But I do not believe that these discussions have been I do not believe we've had a discussion yet and they certainly haven't had discussions that are that are thoughtful and that are probing and that has a chance to answer questions and so I'm trying to do that tonight and then after that motions there are motions on the dais there are a lot of motions on this day as tonight supervisors as I read through some of them some of them are CIP motions that's appropriate some of them are motions on

[00:12:38] items tonight but some of them are motions that might be more appropriate for wrap-up and i say that because we haven't finished with all the departments yet we haven't yet talked about the anything in our non-profits um i do not know mr hemistry is the public um uh defender coming in um i don't know if that's happening so it it is it is too early for some of these motions some of of them should be here, are

more appropriate for wrap-up. And so if I don't allow your motion tonight, it's not because I'm not allowing your motion, I just think the motion is better

[00:13:17] suited for wrap-up. So just please know that in advance, okay? I think they're all fine, but they just belong where they belong, some belong in wrap-up. I think that's all I have. I am so pleased that we start tonight with the courts. I'm going to ask Judge, the Chief Judge Douglas Fleming and Chief Judge Alex Ruda, Alexandra Ruda, to come to the table please. You two, our courts are first tonight. Supervisors, if you have any questions before we start with the courts, you can ask that to our staff now. Otherwise, the courts start

[00:13:56] on page 62 and we will just dive right in. So before you all give your presentation, Are there any questions for staff before we start? Seeing none, judges welcome, welcome to the board room, welcome back to the board room.

[00:14:11] We don't see you very often, we really just literally see you once if we're lucky twice a year, but it's lovely to have you here. So welcome and we're ready when you are and we're on page 62, supervisors.

[00:14:28] Thank you for allowing us to appear this evening. With me is our Chief of Staff Alejandro Rueda. I said your name incorrectly, I apologize. I will default to referring to her as Alex, and I will refer to Alex in a moment because she has all of the pertinent statistics, but just wanted to thank you all for allowing us to come.

[00:14:55] We're here with a request for an additional staff attorney and an additional legal specialist. We made the same request last year but withdrew it before we got to this point because we learned that it was too early to get the recommendation from the Judicial Council for an additional judge and we did not want to become coming here asking for something that we felt we didn't, well, we felt we needed it for reasons that Alex can explain, but we wanted to be

[00:15:29] good stewards of the public purse. Thankfully, we're, I hope, within the next week or two, will learn that the General Assembly has approved our next judge, which makes this request more pertinent. That being said, we did tell the Judicial Council in October of 2024, so that's going on a year and a half, that judging from judge to resident ratio, which I think is probably

[00:16:03] the most accurate measure of workload, unless you believe that a person in one part of the Commonwealth produces far more cases than a person in another part of the Commonwealth. Generally, people drive workload. They drive case filings. We are the most underjudged circuit of the 31 circuits in Virginia by far. We currently have a judge-to-resident ratio of approximately 1 to 103,000. The next closest to us is 1 to 68,000. The state average is 1 to 50,000, which means that

[00:16:39] about half the circuits are below that, some down to 1 to 26,000. I'm not complaining, but it gives you an idea of the workload. And so we, in order to try to keep up with it, and I say that somewhat tongue-in-cheek given how long it's taking to schedule trials in our circuit we're into 2028 setting trials already which is not optimal we have called upon substitute judges retired judges who have agreed to substitute for us and i think one interesting statistic is last fiscal year we

[00:17:19] used substitute judges 192 times. In the first half of this fiscal year, we've already used substitute judges 172 times. We're thankful for the help, but that's not an optimal situation when you don't have a full-time judge who is tracking a case and has that familiarity with the case because many of them, as Supervisor Kirshner knows, produce multiple hearings.

[00:17:51] So to have the familiarity with the case is helpful. With that being said, I'll turn it over to Alex. She may have a few more facts to share, but that would be our request.

[00:18:07] Chairwoman Randall and members of the board, thank you for hearing us this evening. As Judge Fleming indicated, we are the most underjudged circuit in the Commonwealth of Virginia, and my judges are just, quite frankly, dealing with just burgeoning dockets and overloaded with work, and the only way, quite frankly, that we are able to make it work is because the county has blessed us with staff, and the workload is just continuing to increase.

[00:18:41] As you can see from the performance measures that we've started to track, just from 2022, fiscal year 22 to fiscal year 25, the legal specialist processed 9,000 daily orders in 2022, and last year they processed 12,000 daily orders.

[00:18:59] I looked at just the first half of this fiscal year 26. They have already processed close to 7,000 daily orders, which means that by the end of this fiscal year, I'm thinking that they probably will have processed about 14,000. That having been said, the numbers are equal in every other performance metric close to it, which is why we make robust use of substitute judges.

[00:19:25] It is not uncommon on any given day that we have our five judges plus three substitute judges in the 20th Judicial Circuit. We frequently have a substitute judge in Rappahannock, one or two substitute judges in Falkir or here, and then our five judges are sitting on any given day.

[00:19:43] So it is a robust use of substitute judges, which means that the legal—I'm sorry. Can you tell me what the circuit—what counties or what areas are the circuit? The 20th Judicial Circuit constitutes three counties, Rappahannock, which does not require as much work as the other two counties since it's a county of 7,500 people, Falkier County, and then Loudoun County, which is the one that has the most work and the most workload.

[00:20:10] And the legal specialists have two primary functions in terms of the assistance that they provide to the judges, which is to prepare the dockets every day for the judges and also to process the orders that come up on a daily basis.

[00:20:26] And those orders would be divorce decrees and everything like that, concealed weapon, handguns, things like that. you want to step in madam chair members of the board just to make this clear the legal specialists and staff attorney's eyes never look at anything in fall care of rappahannock that's handled totally by the judges who get assigned there they have to figure it out again i'm not going to like we don't get the help in those counties so we're talking about loudon people for loudon work just

[00:21:04] want to make that clear. Well, gosh, thank you. Before I send it to all my colleagues for questions, is there a rationale of why we are the most underjudged circuit? Do we know why? What has led to this? Let me choose, I'll try to, I want to accurately answer your question. Mr. Kirshner going, I can tell you, but I don't want Mr. Kirshner to tell me. I'm actually going, off the record. Well, this is not being critical toward anyone,

[00:21:39] But we appeared at the Judicial Council in October 2024, and I think we were the first circuit that said what some circuits were thinking, but no one had said to legislators and our chief justice, which is the National Center for State Courts, which has done the weighted caseload study for years and years.

[00:22:04] We stood up with a PowerPoint presentation and a member of the National Center there, and we said, this study that the Office of the Executive Secretary has funded and approved for many years is flawed.

[00:22:23] It's not flawed because the National Center did anything wrong. It's flawed because the National Center's premise in weighted caseload study was based on case counts, and we established for the Judicial Council that clerks generally receive cases, and they assign numbers to cases.

[00:22:49] There is no uniform methodology in the Commonwealth of Virginia for the 31 circuit court clerks to count cases. so what is a case in one circuit may not be a case in another circuit. Some circuits may count a motion to continue as a separate case, and you can only imagine. We were not only not doing that, we were, in many respects, I guess unwittingly hurting ourselves. We would receive, for example, a domestic relations case that asked for divorce, spousal support, equitable distribution, child

[00:23:27] support, child custody, we would hold a custody hearing and then, because that's priority, schedule out the equal distribution and support. So we might devote one or two days to a custody case, schedule the equal distribution four months from then, and between that time, there would be two rules to show cause on the decision we made about the custody, contempt proceedings, for example, or motions to reconsider, or motions to modify and then we'd hear the all the financial aspect of the case which would beget

[00:24:05] more motions to modify and this would go on sometimes for a year and we would count that as one case so we asked our docket manager to go back and say how many hearings are we holding and just very quickly in one day she said well here's here's a case where you held eight judge days, eight days worth of hearings, one case. In other jurisdictions, that might be eight cases.

[00:24:31] In some jurisdictions, the Commonwealth attorney will receive, for example, a forgery and uttering case, and it might be 53 counts. They won't deal that case in the district court. They'll bring it up to the circuit court. Dismiss 50 of them if the individual pleads to three. How many cases is that in that circuit, 53 cases, even though the judges only heard three. Here, our Commonwealth attorneys don't do that. If they can reach an agreement, it's generally done in the district court, so it comes up as three cases. So I'm not saying one way is right and one way is wrong. I'm saying

[00:25:09] they're just very different. So one circuit might look like they're working at multiple levels more than our circuit when it's not the case. And so we've brought this to the attention of the Judicial Council, and I do believe that they are trying to encourage the clerks throughout the Commonwealth to be more consistent in how they judge what a case represents. Long-winded answer, Madam Chair, to a very straightforward question.

[00:25:37] That was a very helpful answer. Thank you very much. Supervisors, do you have questions for Judge Fleming? No. Mr. Kirshner. Thank you, Madam Chair, and thank you, Ms. Rueda and Judge Fleming for coming. I I just want to make -- these two are within the budget, right?

[00:25:55] That's -- these two requests, they are in the current budget. Thank you. Yeah. So when I first found out about the case discrepancy, which you have just described, which I was a little shocked, honestly, it gave me a lot of respect for Judge McHale and Judge Horne back when there were only two judges on this circuit.

[00:26:13] I'm getting a little long in the tooth, but that wasn't that long ago, if you recall. So we have now five judges. Is that correct? Correct. Okay. Judges are shared with the other jurisdictions as well, so that one of the reasons obviously that we are, we have to rely heavily on our substitute judges from, who are somewhat retired.

[00:26:34] I would assume they come from other jurisdictions, is that correct? Okay. So I think you probably need a couple more judges sooner rather than later. I'll put that on the record since the media is here. Yes, are you, is that an agreement, Mr. Rueda?

[00:26:52] We need five more. Five more, okay. So the numbers bear that out. And so we're getting one this year. Hopefully our state legislators will hear what's going on here and step up and get us some more real fast to give you some relief. I'm not sure we're gonna put them all, but I imagine we'll figure that out when the time comes.

[00:27:09] First of all, thank you for all the work that you're doing. It's tremendous. And especially under this very heavy workload, I know it would be very easy, Judge Fleming, for you to probably throw your hands up and retire, but we know that's hopefully not the case. We need you here, and we really appreciate your support.

[00:27:25] I'm obviously 100% behind these resource requests. The one question I did have, we had a clerk of the court, Clemens, here a few nights ago. I asked him the question about the new clerk for the new incoming judge.

[00:27:42] He said that had been funded last year. Is that your understanding as well, or is that part of this resource request? Do we know? The courtroom clerk? I just asked, I don't know if it would be a support clerk or a courtroom clerk. Do we know?

[00:27:58] I mean, is that being covered? I don't know the answer to that question because our courtroom clerks are employees of Mr. Clemens, the clerk of the circuit court. Sounds like maybe. I don't know if that position was funded or not. I'd have to defer to Gary on that.

[00:28:15] Okay. I assume he was telling me the truth and there's a reason not to. I just wanted to know if this, maybe he misspoke and this was the same. Well, can you just tell me briefly what these support staff resource individuals will do that would help behind the scenes, I'm assuming, will not be in the courtroom? I'll take a whack at it, and then Alex can modify or correct me.

[00:28:35] Our legal specialists are essentially, probably best understood as paralegals. They do more than paralegals, and so we refer to them as legal specialists as kind of a nod to their qualifications.

[00:28:53] They'll handle, the first thing they do is process daily orders, and you heard Alex give the numbers. We'll have probably 14,000 daily orders this year, so that has nothing to do with the judge taking the bench and hearing a case.

[00:29:11] That's just the flow of daily orders, which all have to be reviewed. They will review each order. They will make appropriate notes to the judge. Your Honor, I'm not sure this looks right, or can you please check service?

[00:29:29] I can't find service on this. If we had to do that, we'd spend all of our time in the office. We just wouldn't have any time to go to court. So they put a lot of time into that. How many applications for a concealed carry do they process, Alex, per year?

[00:29:47] It's thousands. And that's pretty labor-intensive because you have to go through criminal record checks, which are oftentimes many pages long, cross-reference them to applications, make notations to the judge as to whether they feel a person does or doesn't qualify.

[00:30:07] That judge has to sometimes make decisions on gray areas. So they do all of that, and then for each judge to whom they're assigned, and each of them have an assigned judge, they will receive days in advance the judge's docket.

[00:30:23] They'll go through the docket, prepare cover sheets for all of the cases. We put a lot of effort into making consistent cover sheets so that they make notes to the judge so that when we're reviewing a stack of cases for a day, which can sometimes be a lot and sometimes for a multi-day case, it might just be one case, except for two or three days, the judge has a leg up in their preparation.

[00:30:52] Have the parties been served? Do we have the right parties? Are there any pending motions that haven't been heard? Who are the attorneys in the case? There's all manner of factual information that's helpful to the judge before they start reading the briefs, the pleadings, et cetera.

[00:31:14] So it's a huge time saver. And, Alex, I'll defer to you on other things that they do. I know there are other tasks that they have, but our staff attorneys will interdict cases that have particularly challenging pleadings.

[00:31:33] Demers, pleas and bar, motions for summary judgment, motions that appear to warrant a significant amount of legal research. And they'll either prepare a memoranda to the judge, trying to synopsise the motions and direct the judge's attention to parts of the pleading so that a judge can review that motion, hopefully, in much less time than it would take them otherwise.

[00:32:03] or they'll meet with the judge about a case and talk with the judge about it, answer the judge's questions to try to assist the judge in preparing to hear the case. Did I leave anything out, Alex? And just your answer. Alex, you got to turn your light on, ma'am.

[00:32:21] Thank you. With respect to handgun permits, in fiscal year 25, it was 3,800. 3,800. Thank you. Thank you very much. Mr. Crony. Thank you, Chair Randall, and thank you, Judge Fleming. I'm happy to support your two resource requests.

[00:32:38] With one additional judge, what will be the judge-to-resident ratio? Will it go down, do you think? It's going to go down, but I'll be frank. It will help, but it's not going to help a lot. And we've said this to the Judicial Council, And your question kind of is a good segue with Supervisor Kirshner's question.

[00:33:04] To put the 20th Circuit in the 50th percent, right in the middle, in the average of the state, we'd need right now five more full-time circuit court judges. So two of our judges I tasked with doing a PowerPoint presentation to the Judicial Council in October, and they said, we'll do the PowerPoint presentation, and it was a good one.

[00:33:27] if you'll go down chief judge and you make the ass to the chief justice because we don't want to tell him how many we really need and so i did go down and i i i told then chief justice goodwin mr chief justice we really need five judges but just so you don't take your shoe off and throw it at me we'll take three this year and we only got one and and i i understand our senators and delegates um have tough jobs and they're guardians of the public purse so i'm not ungrateful none of alex we're grateful for any help we can get but to be frank um it will help some but it's not

[00:34:05] going to help a lot um did it take you a while to get that one because it seems to me that substitute judges might be more costly than just getting the judges that you need i i don't want to speak for the members of the judicial council when we met went and met with them i was honored to serve on the judicial council for the three years preceding that year so i sat and voted on quite a number of judge requests from circuits and they were typically about they'd make the request we thank them send them out and it was usually about a 10 minute

[00:34:43] conversation and every single time a circuit came down we supported it to the general assembly After we left, we were told later they had a one-hour meeting and then decided to have a special task force of some of the members of the Judicial Council to get with the Office of the Executive Secretary.

[00:35:07] They ultimately sent people from OES the beginning of the next year up to the 20th Circuit to meet with clerks, docket managers, and judges. And honestly, I want to give them some credit. I think they thought something's got to be wrong.

[00:35:25] How can these people come down here and say that they need five judges? They must be doing something wrong. And when they came up with their list and they said, are you doing this, are you doing this, are you doing this? Ultimately, they went back, and I was told by the head of judicial services, well, chief judge, you all are doing everything that we can think of already.

[00:35:49] He said some very nice things about how hard we're working, and we were appreciative of that. But, again, that has currently resulted in zero additional judges, so we're hopeful in the next couple weeks we can get one.

[00:36:08] And we'll keep doing the very best we can. Thank you. Thank you, Mr. Crony. Mr. Sainz. Thank you, Madam Chair. Thank you, Judge, for being here. I appreciate it in all the work you guys do. So just to clarify a very short question, this has been going on.

[00:36:24] We've been short staffed in regards to judges for a pretty long time. How many years would you say? Let me rephrase the question. Would you say it's been at least three administrations of different governors or so?

[00:36:41] Supervisor Sains, I will, in October, finish 44 years at the bar here. In all 44 years, we've been short. Wow.

[00:36:57] All the way back from when we had one, and that was Judge Penn. And one judge in Loudoun County in the 80s for a while until Judge Horn and Judge Shamblin took the bench in the late 80s. It's it's not a new problem. Thank you. Appreciate it. But but we're a little late to the party with our case counting.

[00:37:17] So I think we're trying to get better at that. Thank you. Well, seeing no other questions, I would say, first of all, thank you and thank everyone both on the bench and everyone who supports the bench because we know how much work it is to support the bench. I would also say that if there's anything that we can do from this board, whether it's going down to Richmond, writing a letter, making phone calls to our senators and state delegates, or other senators and state delegates.

[00:37:44] Let us know. You and I could do a road trip. It's fine with me. Let us know how we can help with this, because certainly, if we need five and we're just getting one, we are woefully behind. But we appreciate you so much for being here, and thank you for coming in. Supervisors, do we have any motions on the dais?

[00:38:02] Seeing none. Thank you very much. Thank you. Our next department is community corrections. You will find them on pages 54 and 55. Well, good evening. First and most important question is, why haven't we had a cookout?

[00:38:37] What was that about? Come on now. Ready for that. Ready when you are. Thank you. Good evening, Chair Randall and board members. I'm Chip Sullivan, Director of Community Corrections. I'm joined at the table by Assistant Director April Higgs and Financial Analyst Jacqueline Johnston.

[00:38:58] It's my pleasure to present our FY27 resource requests, which are funded in the proposed budget. Our priority one is designed to support our juvenile and domestic relations court division by addressing the high caseloads of our officers who are supervising domestic violence cases.

[00:39:17] The American Probation and Parole Association recommends a 20-to-1 ratio for high-risk cases and a 50-to-1 ratio for medium-to-high-risk cases. We believe the optimal domestic violence caseload ratio is 35 to 1 based on the workload of our Loudoun County officers.

[00:39:38] This would ensure the quality of services to the courts and promote public and victim safety. Currently, the department's assistant director directly supervises all employees in this division. The proposed supervisory position will balance management span of control by creating a division manager to assist in supervision of staff.

[00:39:59] Our second priority consists of two officers that are designated for permanent assignment at our satellite office on Ridgeway Circle. These two positions will also supervise both pretrial and probation cases, providing maximum benefit to our department by stabilizing caseloads in each respective division.

[00:40:19] Excluding specialized caseloads, almost every caseload in the department exceeds 50 cases, with many in the mid-60s or higher. Additionally, caseloads in eastern Loudoun continue to increase. Examining our data during the past year offers compelling evidence that our service level is changing, along with increasing use of our satellite office at Ridgeway.

[00:40:45] Over the past few years, caseload growth has been relatively stable, with pretrial ranging between 237 to 284 cases, and our probation division between 777 and 850 cases.

[00:41:01] But today, pretrial is supervising 450 cases, with 494 new cases opened since October 2025, and probation is supervising 1,036 cases.

[00:41:17] Based on this significant growth, we believe that the proposed positions are necessary to maintain our current service level to the courts and our clientele. Additionally, reducing caseloads closer to the APPA guidelines promotes more effective supervision, fewer violations, and increased public and victim safety.

[00:41:39] Thank you for your consideration of our request. We'll be happy to take any questions from the board. Mr. Sullivan, if you said it, I missed it, but I don't think you said it. You said the optimal DV number is 35 to 1. That's correct. What is ours now? Well, the three full-time officers that we have, their caseloads are 80, 74, and 94.

[00:42:02] Okay. All right. Thank you. Supervisors, if you have questions, put your light on. Ms. Bricksman. Thank you, Madam Chair, and thank you for all you do. I really appreciate you. Can you clarify for me? I know that last budget cycle we did a supplement for, I guess, the state probation and parole.

[00:42:24] But my understanding is this is a department that's only county-funded. So this is not something where we're trying to pick up where the state is not funding. This is solely county service. Yes, that's correct. Okay, okay. But how do the two work together, if at all?

[00:42:40] So we actually serve all three courts in Loudoun County. We serve juvenile and domestic relations, general district and circuit. State exclusively serves circuit court. um so more serious crimes well or that's convictions or so i would say that um uh especially on our pre-trial uh case load what you see is the folks on pre-trial end up in circuit court gotcha typically okay um and and and we can supervise class five and uh and and six felonies

[00:43:19] We have a domestic violence division that supervises strangulation, assault and batter, family member. Is there ever an issue with, you know, starting out with one probation and parole, say, you know, when it's in the beginnings of the process and then having to shift over to the state agency?

[00:43:44] Because it sounds to me like there's a chance that somebody will have more than one probation officer then. So, yes, it is possible that a person's supervision could start with us and end up in state.

[00:44:03] Someone else. Okay. All right. Well, I'm happy to support your request. I really love seeing the case per officer, caseload per officer go down. I think that's really important for your sanity and your work-life balance and all those things.

[00:44:19] So thank you for everything you do. Thank you. Thank you. Mr. Kirshner. Thank you, Madam Chair. Thank you for being here. Thank you for supervising our, I guess, both those who have pled or are on probation for local offenses as well as those on pretrial.

[00:44:36] I know that's an important aspect of the community, and I think it's important for rehabilitation and also important for the safety of what we do, something we're going to talk about, obviously, later as well for our schools. So real quick question. Right now, I understood you to say we have 80, 70, or 74, something like that in terms So the domestic cases is for your three domestic probation officers, is that correct?

[00:45:01] Yes, that's correct. And that doesn't include pretrial, right? Those are just those that are currently being monitored for a probationary period. That's correct. Okay. And you're asking for two new FTEs on that? So what we're asking for is one domestic violence officer, and we call that position a hybrid.

[00:45:20] I see. Because it can supervise probation and pretrial cases. And then we're also asking for two hybrid probation pretrial officers to be permanently stationed at Ridgetop. Okay. So they will all deal -- so they'll be hybrids.

[00:45:38] Two of them will be partly involved in the domestic violence. Only one. Only one. Okay. I understand that. I'm sorry. That's the way it was laid out in my book. And that's fine. So with that said, how will that change the key measurements here? If we want to try to get down to 35, how are we going to measure that if they're only part-time?

[00:45:55] Part-time. So, well, not part-time, but hybrids. Are they going to be 50% of their time dedicated to the domestics? I mean, right now, you told me, I think you said the key is to go down to 35 per officer.

[00:46:12] Right now, we're in the 70s, pushing 80 with some. We have a hybrid we bring over. How is that going to help in the workload, I guess, essentially? So, if I can clarify, the one position is exclusively for a domestic violence caseload.

[00:46:28] And that gives us some flexibility in our approach to respond to trends. If things get higher on pre-trial, then that position can help with pre-trial. If it's higher on probation, then it can respond there.

[00:46:46] I think, honestly, having it be designated as a hybrid really gives maximum benefit to our offices, to our office. So basically we'll be taking, we'll be removing, I guess, a third or a fourth of the workload from the three with the full-time.

[00:47:07] Is that, if that person take, something like that, because we have three right now, you'll be adding a fourth. Right. Okay. I think that moves us in the right direction. Yes. Thank you. Thank you. So I don't think there's any motions on this day as to remove anything from your budget.

[00:47:22] I would say this, you all have really hard jobs. I used to be a community therapist in another life, and then I worked in as a mental health therapist in the jails and prisons. And so it's really important work because these are not throwaway people, and we know that so many people do change their lives and turn it around, and that's good for their families, for themselves, for the communities, and you all help them do that.

[00:47:52] But I would also say that they're hard jobs and a high burnout job. So my only ask of you all is to take care of yourselves, to take care of each other. Let us know if you need anything, because having done this work before, it can be very emotionally taxing work.

[00:48:09] It can be as emotionally taxing as the work that our amazing first responders do. So please just remember that and take care of yourselves. Thank you very much. Thank you very much. Subvisors, do you have any motions on the dais? Seeing none, thank you all very much.

[00:48:26] Thank you. Appreciate you. we're going to go to fire and rescue fire and rescue is on pages 68 to 73 hello chief williams how are you hello chief pro how are you i thought chief nally and then we'll leave and i'm like no

[00:48:56] no can't leave we are ready whenever you are it's good to see you chief yes ma'am thank you madam chair members of the board of supervisors good evening i'm pleased to be here to speak about our FY 2027 proposed budget. I'm joined by Assistant Chief Travis Proe, Acting Assistant Chief of Operations Michael Nally, our Chief Fire Marshal Deputy Chief Micah Kiger, as well as Dr. Mary McGuire, our management of budget, finance, and administration. Of note this will be Dr. McGuire's last

[00:49:33] budget cycle as she intends to retire after 35 years of service to the county. I thank and commend Mary for her commitment to Loudoun County over the suffice it to say things have changed a little bit here in Fire and Rescue since she began in October of 1990. This proposed budget begins to address several long-standing priorities for our organization. There are additional departmental priorities, however we do not have any resource requests in the alternative scenario. First there are 18 dedicated FTEs in the proposed budget for developing our staffing factor. Based on our current daily minimum staffing of

[00:50:09] 150 personnel, we have calculated a deficit of 54 positions. The staffing factor is intended to help us more effectively and efficiently manage our resources and operations. These FTEs represent the first of three years of a phased approach. I am pleased about the prospect of beginning to focus on reducing that deficit. It helps us better manage the current service level.

[00:50:37] Next, the new Philomont Fire Station is expected to open in first quarter 2027 calendar year. The budget accounts for adding a 24-hour EMS transport unit as well as a fourth person on the engine. As you are aware, this is one of our more remote stations.

[00:50:55] Adding the EMS unit will allow us to reduce, on average, our response times by four minutes to EMS incidents in this community, which will help us better meet the NFPA goal of having a transport unit on scene within eight minutes. The fourth person fulfills a long-standing goal within our system. It promotes safer and more efficient fire ground operations to better serve our community. The board initiative of four-person engines, for which I am deeply appreciative, moves us towards the recommended service level of four persons per engine. It is our intention to place these personnel at the Middleburg,

[00:51:35] Loudoun Heights, Luckets, and Hamilton Fire Stations, which represent the Little River and Catoctin districts. While this is considered an enhanced service level, this action better aligns us with NFPA 1710, as well as recommendations from our two significant incident reports, specifically the Meadowood Court House Fire in 2008 and the Silver Ridge House Explosion in 2024.

[00:52:00] Additionally, the proposed budget includes four assistant fire marshal positions, allowing us to always provide two assistant fire marshals on duty, which is imperative to officer safety. Currently, that objective is managed by the use of overtime.

[00:52:15] As such, like the operation staffing factors, these resource requests enable us to more effectively meet the current service level. These positions will help manage the growing workload more effectively in the fire marshal's office. They will assist with emergency and non-emergency incident involving fires, explosions, hazardous materials releases, and fire prevention code enforcement.

[00:52:41] Lastly, there are two revenue-neutral positions in the proposed budget. The first is to assist with the EMS cost recovery program and will be funded by that program. This is the first additional resource since the program's inception in 2015.

[00:52:57] The second position is a fire training instructor for the training academy and is intended to be funded by the state's Aid to Localities Entitlement Grant Program. A few closing points to share. We are starting a recruit school on Thursday with 33 personnel.

[00:53:14] This will reduce our uniform vacancies to zero, giving us plenty of opportunity to hire and onboard the 48 firefighter personnel during 2027. In fact, we have been able to overhire the class by five personnel. All of our FY 2026 budgeted positions have been hired. We have 30 personnel fully eligible to retire today. That includes those aged 50 and 25 years of service. In five years we will have 115 personnel fully eligible to retire. Continuing to build the staffing factor will allow us to better

[00:53:51] manage these future vacancies. Thank you for the opportunity to share these comments. Staff and I are available to answer questions you may have. Keith Williams, thank you. Thank you, and thank everybody in the department for all that you do every single day.

[00:54:07] Before I go to questions, can you just quickly kind of explain what the term staffing factor means? Yes, ma'am. A fire department staffing factor is a planning multiplier used to determine how many personnel are needed to keep a position staffed 24 hours a day, 365 days a year, while accounting for normal absences such as leave, training, illness, flight duty, and other time away from shift work.

[00:54:34] Said differently, as we plan future positions, one seat that we staff 24 hours a day, we put, you know, calculate 4.35 FTEs for that one position that we need to fill.

[00:54:54] Okay, I think I understand that. Okay, all right, thank you very much. Supervisors, do you have questions for our Fire and Rescue Department? Supervisor Letourneau. Chief, good to see you. Thank you. Especially this year. So four-person engine, obviously something the whole board and myself talked about for a long time and excited that we're making progress.

[00:55:14] I just wanted to confirm the answer to, I think, one of our written questions, which was that the intention would be moving forward to try to do this in two companies per year. That's correct. This would bring us to nine out of 19. Yes, sir. Okay. Obviously, selfishly, I would love for it to be also in my area, but I know, I understand the just rationale, which is that it's harder to get additional resources out to some of the more remote locations, and so having the additional folks there first makes a lot of sense.

[00:55:46] And then the rest of this, for the most part, is really just about filling vacancies and ensuring we have coverage, right? Just being efficient in how we're using resources. So the staffing factor, we're actually trying to catch up where we haven't always.

[00:56:03] We're so far behind because we've expanded so much with new stations. We're having to catch up with that. I mean, there's nothing exciting or fun about staffing factor. We're not getting new engines or new ambulances on the road, but we are just preparing so we don't have the mandatory holdovers.

[00:56:24] we won't reduce overtime because they also consume overtime, but it'll be more predictable and helpful for our organization. Presumably we would still get a benefit in terms of the quality of service. Absolutely. Yeah. It guarantees people time off, especially at the end of their shift, So higher morale, safer.

[00:56:51] Great. Can I comment on the four person? Certainly. So the engines that we selected, and I thought of you as we wrote this. He's going to ask about this. There is no other suppression resource that's staffed in each of those fire stations.

[00:57:11] So that made it a little easier for me to make that right. No, I understand it. I do. I'm just glad to hear the rest of the plan, which is to try to do two more per year so that in a couple of years we'll get there. Yes, sir. Unless we open new companies.

[00:57:27] Yeah. We probably will. All right. Thank you. Mr. Kirshner. Thank you, Madam Chair. Good to see both you, Chief Pro and Chief Williams. I think we spent an evening together at the Lockett's Volunteer Fire annual banquet.

[00:57:44] Yes, sir. I think I won the raffle and you didn't, if I recall. That is also correct. Okay, so it's good to see you back here. Good help. We can't win raffles. We can't win raffles. It was all volunteer. It is, I had a recent event.

[00:58:02] I don't know if you heard about it. My house burned down in another county, not the one I live in currently, but my kids were there. They made it out. It's kind of a rural area that we were in, and it turned out to probably be almost a total loss, probably a total loss. But I learned something very valuable from that and how important response times are and staffing and that sort of thing.

[00:58:23] And it gave me a new appreciation for your department and what you do. It helps me understand why we did what we did out in Philmont. It was a difficult decision. There was some community angst over it. But, I mean, when a fire gets started, it gets started.

[00:58:40] And the quicker you get a response there, the more likely you are to save lost property or human life for that matter. So I'm very glad we did. You mentioned in this particular resource request on Philemon, just out of curiosity, you said we have 24 EMS, 24-hour?

[00:58:58] We do not. This resource request will bring 24-hour EMS coverage to Philemon. Is it more than that? You said it's full staffing. It's more than just 24-hour EMS, or is that the full? That includes the tanker. I think there's a typo in that, to be honest with you. Okay. So there's two people on the EMS transport unit 24 hours a day.

[00:59:17] and then we will add the fourth person on the engine so that's however many that is okay and that'll bring it up to full staff reasonably full staffing yes sir okay and that's great i'm great very appreciative and thank you for the resources i mean obviously western louden is one of those remote areas we want to try to keep it as remote but we also want to try to keep it very safe so i'm grateful to the you and to the county administrator for making sure that we're really getting our fire and rescue up to par for Western Loudoun in areas that are obviously far more remote, and the response times are certainly being shortened, and we're improving

[00:59:55] our equipment and our personnel, so just appreciate all the work you've done, and thanks for being here. And sorry to hear about your house. Well, you know, that's why you have insurance, so I was just glad my kids were out of there. Absolutely. That's our number one goal every time we respond to a fire. Absolutely. I learned a lot.

[01:00:11] Thank you. Thank you. I actually, no joke, tried to nominate Mr. Kirshner's boys for Valor Awards because how fast they got out and all the things they did to save one another, including their little brother, is pretty amazing.

[01:00:30] And so, I mean, thank God they got out, but it's also really amazing. So, to some degree, staffing factors, first of all, it is catch-up for you all. Yes, ma'am. But it is also things like when people go on vacations, you have somebody there.

[01:00:50] When people call out sick, you have somebody there. If there is a very large need on this part of the county because there's a huge emergency, you have backup or fill-in. Are those things the staffing factors could be used for also?

[01:01:06] I would agree with the first two things you said, but not the last part about being able to surge. Surge, okay, that's the word. We could certainly bring them in off duty for special events or, you know, if we had a major conflagration and we were in it for multiple operational periods, we could call them back.

[01:01:27] But you were spot on with the first two about injuries, vacations, the temporary restricted duty, mandatory training, career development training opportunities outside of the ones. So those are all just kind of fill in for all those things.

[01:01:44] Our goal was, and I think I speak for the board, was to make sure you all stayed post-up with your employees that you needed. And I know we've opened stations, and so that might have impacted it.

[01:02:04] But why did we fall behind? Because we don't want to fall behind again. I can't specifically answer that. I think sometimes it was, there just may not have been enough funding. The Leesburg South fire station for which you've provided funding, that was 47 FTEs.

[01:02:24] So we had to, you know, put that, you know, get that on the docket, which we did over two fiscal years. So there have been a lot of moving parts for us. All right. Well, I certainly don't have any emotions on the dais right now. What I would say is this, I say this all the time, you all are incredible. When people have the worst days of their lives, you're there. And you're there every time, and you're there professionally, and you're compassionate, and you're helpful, and we have just a phenomenal combined system.

[01:03:01] We talk, you and I talk all the time about you all taking care of one another and I know that you, we now have that position, we've had it for a while in your department and I watched that happen with the Silver Bridge incident. I watched you all take care of one another in every way, which is so, so important.

[01:03:20] So we appreciate you so much. So thank you. Thank you all. Thank everybody. Supervisors, do we have any motion on the dais? Seeing none. Thanks so much. Thank you. All right. Our next department is the Sheriff's Office. It is page 100 through 105.

[01:03:41] A little change of uniforms going on down there. Good evening, Sheriff Chapman. How are you?

[01:03:59] I'm well, thank you. Good evening, everyone. Good to see you. And let me start by saying again, thank you all for being here. Thank you all for what you do. Every single day, thank you for what you do. We appreciate you. Sheriff, we are ready when you -- you got my email today so okay so we are ready when you are thank you chair randall members of the board every year we come to the county with our budget request in our ever evolving environment we submit our wish list based on the particular needs for the coming year and that wish list routinely gets

[01:04:35] narrowed down to our top two or three requests these requests are discussed in detail with county budget personnel and are no secret to the board of supervisors or the county government as we appear before the board of supervisors at the budget workshop. This year our top two requests made the cut. They consist of a desperate need for additional training personnel due to the increasing expectations placed on law enforcement from de-escalation tactics to changing laws and emergent technologies. Our training is superb but it needs to advance in order to continue to produce the lowest serious crime rate in northern Virginia, a consistent 85 percent citizen approval

[01:05:11] rating, and an ability to investigate and close cases at remarkable rates by arresting the perpetrators. Recently, for example, we have become proficient in pursuing financial crimes. In one case in particular, we returned \$1.4 million stolen in a cybercrime Bitcoin fraud.

[01:05:28] But continued training remains essential. We have a remarkable record of success because we listen to the people we serve, not special interests, and we don't cave to political ideology, especially when safety of our children are at stake. We constantly engage with law enforcement agencies and organizations nationwide to review and employ the latest and best practices and technology.

[01:05:49] The standard of service we deliver to Loudoun County is not an accident. In fact, since taking office in 2012, our serious crime rate has gone down 48%. Our other top priority is a graduated four-year augmentation of school resource officers, which would be assigned to elementary schools.

[01:06:07] This request could not be simpler. Either you support an extra layer of safety, similar to what we already have in middle and high schools for over 30 years, or you don't. That's it. however for reasons i

find difficult to understand this topic is met with an enormous amount of resistance we published a 15-page report with 20 sources noted in the bibliography regularly released information to the public and even held at the request of the school board a town hall meeting we answered every question asked even once completely off topic and there were many and we responded to a bombardment of questions submitted by the members of the board of supervisors in fact the questions were received from the board of supervisors were more than 10

[01:06:45] times the number of questions we received last year, four to over 40 this year, many of which were redundant or required an extensive amount of explanation, even though much of this information was already answered publicly in a town hall forum. And of course, we were given a few short days to answer the majority of these questions. It has been abundantly clear that opponents of this request went to great lengths to convolute, confuse, and conflate a very simple issue, an issue that is about child safety and nothing else. Our request is nothing new. We asked for elementary school resource officers in 2019, 2024, and 2025. Since 2019, our call volume has

[01:07:24] more than tripled from around 500 elementary school calls per year to over 1,500. This is reflective of a national trend. In just the past 10 years, for example, nationally elementary school shootings rose by over 1,000 percent. Because of increasing concerns relating to elementary schools and the benefits SROs provide.

[01:07:44] I challenged the Loudoun County Public School System a blue ribbon panel that dismissed assigning SROs to elementary schools out of hand in a 2024 email to Dr. Spence noting that 62% of the respondents to a Loudoun Now survey supported SROs in elementary schools.

[01:08:01] In a survey published by the Loudoun Now again last week, the 60th percentile remained identical. Just over a month ago, a WJLA poll put support of elementary school SROs at over 80%. During the school board hearing on this topic last week, 18 people spoke in favor of this proposal and nine spoke against it.

[01:08:22] Four brave school board members, Lauren Turnoff, Amy Riccardi, Dana Griffiths, and Carrie LaBelle, stood with the majority and made solid arguments in favor of providing the same protection already provided to our middle and high school students. I thank them and the supporters who came out to address the Board of Supervisors the prior week.

[01:08:40] Yet, despite the will of the citizens our elected officials represent, many completely disregard what they are elected to do, represent the citizens who elected them. Time after time, year after year, the citizens have come in favor of this proposal. It is clear that the majority of citizens in Loudoun County support this request.

[01:08:59] Nevertheless, I heard claims that armed SROs were more dangerous to the children than not having SROs at all. That elementary-aged children were frightened by the fact that SROs are armed, even though we have had drug abuse resistance education, D.A.R.E. deputies in our elementary schools for decades, a program that was nationally awarded for its excellence and loved by parents and students alike.

[01:09:21] That elementary SROs would create a school-to-prison pipeline, even though we had only one arrest of 80,000 students plus last year, and that arrest was in high school, that we would unfairly target black and brown students and that elementary school children would be arrested.

[01:09:37] When there's not been a single arrest of an elementary school child in 14 years, in the 14 years I've been sheriff, that we would target students with disabilities, absolutely false. There's no evidence of this whatsoever in Loudoun, that we would work with ICE to arrest undocumented immigrants in our school system, even though we have not engaged with ICE in any field enforcement capacity, or that we drive the discipline policy at schools.

[01:10:00] Again, a completely false notion. Components referenced a single DOJ report from six years ago that produced some confusing data but did not represent, or present data rather, from the DOJ cops report from 2021 that analyzed over 170 incidents where school violence was averted and many of those were due to the actions of an SRO.

[01:10:20] Then we had claims that were completely unrelated to our SRO program, like issuing gun locks to parents, which, by the way, we do at our stations, or the red flag laws factor into this, a program we have supported and utilized once language I was concerned about was corrected before the final legislation package passed, or that we plan to replace mental health professionals, counselors, or school administrators with our deputies, again, a completely false and misleading narrative.

[01:10:49] It has been clear that the opponents of this extraordinarily simple request decided to make this a political fight rather than acknowledge the simple value of adding an extra layer of security to elementary school children. Then there were questions about the training we receive and whether armed or unarmed security guards could do this job in the event of an active violence situation.

[01:11:10] Our deputies are professionals and receive over 800 hours of basic training, over 500 hours of field training, and another 200-plus hours of specialized training, including crisis intervention, trauma-informed practices, identifying and working with students with disabilities, implicit bias, and the list goes on.

[01:11:28] They can investigate bullying or social media attacks, ensure safety to family members who may have a child custody dispute at a school, and work with school administrators to ensure a safe work environment. conversely armed security guards received 50 hours of training by the department of criminal justice services that's it 1500 hours of training to 50 take your pick and then i had a supervisor ask the farm security guards could do this job effectively if they received crisis intervention training while that would help they still have no training in how to react to an active violence situation cannot communicate with our emergency response system and have no incentive or training on how to engage with our children or provide education

[01:12:08] mentoring or counseling like our sros do i even heard a school board member last week say that her young daughter liked the ideas of sros in elementary school but when the school board member said they carry guns and then she said oh no mommy i don't like that apparently the school board member must have forgotten that our dare officers have been teaching in elementary schools while armed for more than three decades and that we have never received a single complaint about that. A 2025 Virginia School Safety Survey noted the following benefits of having SROs, added sense of security, building positive relationships with law enforcement,

[01:12:45] accessing community information that may impact the school day, trained first responders during a crisis, visibility and presence as a crime deterrent, and collaboration with law enforcement, emergency responders, parents, and the community. Throughout Virginia, there are 352 full-time elementary school SROs. In our region, Region 4, the following counties have elementary SROs, Culpeper,

Fauquier, Frederick, Madison, Orange, and Shenandoah. Yet, with the strongest economy of any of these competing jurisdictions, we have zero. We have one of the wealthiest and most forward-leaning counties in the nation, and we're getting beat by our next-door neighbor,

[01:13:24] Fauquier County. Most importantly, this issue is not a zero-sum game. We are not looking to replace any counselors, mental health professionals, or school administrators which already fall under the purview and budget of the LCPS we are not trying to de-fortify any of the buildings we support all of that we simply want to add another layer of protection protection that is not even coming out of the LCPS budget I've seen the activists come out to kill this initiative have been criticized by going straight to the public on this issue the fact is the sheriff it's my responsibility to keep all of our citizens safe from our youngest children to our oldest seniors regardless of race gender or creed and because I answer

[01:14:03] directly to all of the citizens we serve and not just activists on either side, it is important for me to get feedback from our citizens at large. As a father of six and grandfather of 11, safety is important to me. I have two children who went through this public school system at Loudoun from elementary school through high school and both have done exceptionally well as adults. A great education for children is important to me and so is their safety. You cannot do one without the other.

[01:14:33] I believe I know where this Board of Supervisors is on the SRO resource request, and I find it disappointing. Despite that, I will continue to take a stand in keeping our children safe, and I hope you have the courage to do the same. Thank you, and with that, I'm happy to answer any of your questions. Thank you, Sheriff.

[01:14:50] And before I think we're going to have, I hope, an honest, although tough discussion. Let me say something before that, though. Last Friday? Was it last Friday? Two Fridays ago, you all had your promotion ceremony.

[01:15:07] If anyone, I think, really wants to know what our sheriff's department does and the work of individual sheriff's deputies, the mental health toll, the emotional toll, that promotion ceremony was phenomenal and moving.

[01:15:28] I do not believe, and I will speak for myself, But I don't believe that anybody on this board doesn't believe that our rank and file or line officers are not committed, excellent people. And there will always be times, always, where you can find a person here or a person there in the department of how many sheriff deputies do you have?

[01:15:48] Over 700. There's always going to be a handful that do things that are atrocious and should be dealt with. But overall, our sheriff's deputies are good, honest, hard-working public servants, and I want to put that in the record right now.

[01:16:07] Now, we're having a discussion about other things, but I did want to start with that first. What we're going to do right now, and if you could put it on the clock, we're going to have what's called a committee as a whole. I'm putting this in a committee as a whole, supervisors, because I don't feel like that this discussion has been, Well, I don't think like it's a simple discussion, nor do I think it's been had in a really thoughtful way over the past many months.

[01:16:34] I don't think you can have a discussion that should last one year in 45 minutes, but I'm going to try to have a more thoughtful discussion than I believe we have had countywide. So that's what I'm putting as a committee as a whole.

[01:16:50] Supervisors, it's 45 minutes, and so everyone will get a chance if you'd like to speak, But I do want you to be aware that if I feel like you're dominating time, I will ask you to wrap it up, because we do want everyone to have a chance to speak.

[01:17:06] And so now we are in the committee as a whole, and I will go first to Supervisor Umstead. Thank you, Madam Chair. Sheriff, it's good to see you and your team.

[01:17:18] One of the, I think, most impressive numbers that you were able to provide to the board was the fact that in the last year, there have been, I think it was 1,649 times that someone at an elementary school had to request that a deputy come to the school to deal with the situation.

[01:17:46] that was an overwhelming number in my mind the other number that i thought was um quite overwhelming was the fact that attacks on elementary schools have increased by over 1000 percent over the last seven years but what i want to ask you to do because you had to cover an awful lot in a very short period of time is tell us again about the high level of training that SROs receive before

[01:18:21] they are placed in any schools. Well, I could start with certainly not only the 800 hours that they get through the academy, the over 500 hours they get as field training officers, but they're also trained in basic crisis intervention, advanced crisis intervention, trauma-informed youth interviews and adverse childhood experiences, supporting students with special needs, autism and spectrum disorder, ADHD, sensory sensitivities, and other developmental differences, redirection

[01:18:58] of calming strategies specifically for elementary school-age children, youth-specific de-escalation behavior crisis techniques, collaboration with training with special education staff, school psychologists, and counselors, emphasis on prevention, rapport-building, problem-solving rather than enforcement, fair and impartial policing and cultural competency, training and the blue envelope program, which we introduced about a year ago for people that have autism and other are on the spectrum for if they get stopped by us in a car, so we'll know exactly, but that's not necessarily elementary school training, but it's another element of the training that we do.

[01:19:38] Age appropriate communication strategies, behavioral direction techniques, emphasis on voluntary compliance. Again, trauma-informed training, threat assessment, school-based collaboration, restorative justice and diversion practices, school safety and community engagement.

[01:19:55] And, you know, certainly we increase background checks on any of those security screenings beyond what we do at other Long County Sheriff's officers. So in other words, we take the time to really make sure we get the right people in these positions. That's why I think our school resource officer program is so successful as well as our DARE program because we go through a lot to try to pick the right people for these jobs and make sure that they're that they can be mentors they can be helpful they're not they're not just you know necessarily law and order people but they understand a broader scope of exactly how we handle these programs. One further question and

[01:20:32] this will be my last question Sheriff we've we've heard a lot about how the schools are hardened and I've I've been in our schools since they've been hardened it strikes me that the hardening that does exist does not stop a determined bad actor from getting into the schools am I correct in that or am I wrong I think everything helps I mean so I think it's important that we have because I know when you go into the elementary schools you got to have your

[01:21:10] ID, you gotta swipe, you gotta come in, you gotta go through the administrative office before you get in. I think all those things help. I think making sure doors are properly locked and secured, I think all those things help. But there's no one thing that is a panacea here. And again, school resource officers are just an added element of security. It's somebody there, somebody that in the event you have a critical situation, they're immediately, they've got the proper communications, they know what to do, they know who to call.

[01:21:40] They know how to start marshaling others there that can help a situation, whether it's fire and rescue, other law enforcement professionals, whatever the case is. So I think all these things help. I don't think there's any one thing that helps, but I think, again, school resource officers are a great addition to that.

[01:21:56] And that's why I believe we've had such a successful program in our middle and high schools. Thank you. Thank you. Ms. Brixman. Thank you, Madam Chair. Thank you for coming out tonight. Appreciate it. I had a couple questions in the packet that I wasn't really satisfied with the answers that were given by the sheriff's department.

[01:22:16] My first question was, and this is basically a yes or no answer, have you engaged the immigrant community like New Virginia Majority or any other of the communities on this proposal, on this specific proposal? Yes or no?

[01:22:32] We have been very active in our community engagement. Did you specifically engage them on this proposal? We've engaged everybody on this proposal. That's been a very open and public discussion that we've had on this proposal. Okay, that's not what they shared with me. Are you aware that New Virginia Majority submitted a petition signed by 391 people against this proposal?

[01:22:53] I'm not aware of that. Okay. And then my second question was, because you mentioned that middle school SROs are being pulled over to the elementary schools. and one of my questions was how many actual incidents did we have in a middle school when there wasn't an SRO to take care of it? Sure, so I don't have an effective way to extrapolate that.

[01:23:18] Okay, okay, thank you. We track calls for service, but I don't have a way to extrapolate the... Okay, so we don't really know how much of a threat that there was to middle schools because the SROs were called over to elementary schools. We just don't, we don't know the answer to that question I guess. So for specific to the number of times that there was a call for service at an elementary school where the SRO left the middle school was at the elementary school and then there was another call holding for them to get back to their middle school I don't have a way to I don't have a way in the system to differentiate that. Okay so our schools did vote

[01:23:55] last week that they are not interested in expanding the program. Dr. Spence said as much even in an article last year I think it was March or May there was an article where he said that he wasn't interested the school board the duly elected school board has said they are not interested in expanding this program at this time we spent a lot of time this board I think during COVID well actually I know I was here during COVID basically saying that the board of supervisors does not have operational authority for operations in the schools curriculum

[01:24:32] policies anything like that if that's not we weren't elected to do that the school board was elected to do that and and given that the schools have already said they are not interested in expanding the

program I really don't I guess I respectfully disagree with the chair that we really need to be having a discussion about it right now because the schools have said no they're not interested so madam chair I'm ready to make my motion that I sent out on Friday

[01:25:00] morning to eliminate the resource request. So I'm going to have a committee as a whole and it's going to last for as long as it lasts and then I'm going to make the first motion. Okay those are all the questions. Oh actually the FLOC surveillance request so given that the SRO request may not be approved I know that there's another request for surveillance. I guess you know there are some concerns about FLOC in the community. Critics argue that the system tracks movements of innocent individuals there's data sharing apparently on I

[01:25:36] don't know if they're public databases but there is data sharing and a concern that that it's searchable the nationwide database that you would be collecting information for and then it's also searchable by ice and also that it's been misused from time to time so before I would vote to approve that alternate resource requests I would need to have some sort of some sort of assurance that the database and all the data you're collecting would not be sent to folks that might use it in a way that would harm our community. So I can I can

[01:26:14] respond to that the the priority three requests that we had for the real-time operations center and Jonas first responder did not have any specific funding or anything else for the flock system or any of our other automated license plate readers as part of that program. Like that's not an expansion of those programs or things like that.

[01:26:31] I would also say, and actually Major Slidons are a resident expert on this, but the data sharing requirements and data retention, I know are big issues. Those are governed very strictly by the Code of Virginia. And we follow the Code of Virginia, what the legislature says for data retention and sharing of those things.

[01:26:49] - So does the Virginia Code say you can't give it to ICE? That it won't be searchable by ICE? So the Virginia Code regulates who we can share our data with, and that is limited to only law enforcement agencies in the Commonwealth of Virginia. Okay, thank you.

[01:27:07] Mr. Sains. Thank you, Madam Chair. Sheriff and Sawyer and I'm so sorry. What's your last name again? I'm so sorry. Major Shladden. Thank you. Thanks for being here this evening. My first question, when the MOU agreement was set up with the Sheriff's Department, Leesburg Police and LCPS, and as we noted, it's only currently right now high school, middle school.

[01:27:31] Why wasn't elementary school as part of the original setup? So I can speak to the history on it. So historically, the agreement has been around the positions that we have.

[01:27:50] So in other words, we've had SROs in middle schools and high schools for a long time. So every time the MOU comes up for revision, we are revising the mou based on the positions that we have the current mou draft process was done was started early like springtime of last year it was not we did not add elementary school sros into that agreement at that time because quite frankly i thought it was going to be a fairly quick revision process it has turned out to be longer and it's it's it's going on but the the intent of the current revision was just to renew and make some minor modifications to the

[01:28:28] existing arrangement that we have. It was not intended to be the vehicle for expansion of SROs into elementary schools. Okay, but with respect, that still didn't answer the question. Why was it not

originally put in when the original program was set up? And if you don't know the answer, that's fine. So I'm trying to understand. So the MOU was focused on the schools that we have when it talks about staffing it talks about SROs being assigned to middle and high schools obviously we are responding to elementary schools with those with those same SROs I don't know why I think he means like right after

[01:29:04] they've been there since Columbine and so you guys way back in the 90s when you first put these in place why didn't you include elementary schools way back then when we first started is that what you mean yeah whatever and obviously if you weren't part of the program set up then that's fine if you don't know the answer to just say we don't know the answer i'm just curious when we whenever this program started 1999 2000 whatever it was i can only speculate the fact that it was on the heels of column on some other national ones and so sros the rollout of sros was basically like a top kind of top down okay and then you brought up uh you know the renegotiating of the contract in 2025 correct

[01:29:39] yes there were the mou revisions we started and you just said there was no discussion of adding elementary schools during that conversation of renegotiating in 2025 why was that not the case so the specific purpose of the mou revision again was fairly early in the year last year that was just to modify and address a couple of changes that need to be made so to me if we're renegotiating a contract and you wanted to add new things in to me that would make sense to have that discussion during the renegotiation of a contract and say hey we want to add this in or we want to take this out or make revisions, et cetera.

[01:30:16] So can you expand on why that was not discussed? I mean, as I said, the MOU revision process was started like springtime of last year. I thought it was going to be a quick process just on the SRO program as it was.

[01:30:33] Okay, because you could have had the conversation, say maybe we can't make it this budget season, but let's plan for a year out and stuff when you're having those conversations. Okay, and Sheriff Chapman, you mentioned in your commentary about a supervisor asking what's the difference between a school security officer versus a sheriff deputy with a SRO program.

[01:30:59] I asked that question. The reason why I asked that, did some research, coming to find out in Florida, Texas, and some other states around the country, they actually have an SRO program with a sheriff deputy or police officers, depending on their jurisdiction, how they're set up. But then they also do have a school security officer program, and one of the requirements is that the school security officer had to be a former police officer, so they received a lot of the training hours that you've mentioned, the 800, 1,000 hours, et cetera, that you mentioned in your commentary.

[01:31:31] So it's not out of the ordinary to have a school security officer that receives all the similar training that a sheriff, deputy, or a local police force officer would receive and then be in the schools. So the question is, if the schools were to say, hey, we want a school security officer instead of deputies, would you be in favor again with them, but making sure they have the same hours of training that are required for SRO?

[01:31:59] well I don't know how long ago some of those people were trained and that's Florida and I think the the reason that they've done that was just to have somebody armed in the event that you had an active violent situation I believe our program is much much better than that and we use actual real trained people that are active that are getting constant training that are not just there to be there with a gun in the event you have an active violence situation but actually work with the children work with the schools work with the parents. So it's a lot more than just somebody sitting at the front door with a gun.

[01:32:34] It's a lot more than that. And that's why I think it's good to have professionals in there, professionals that are highly trained, that know how to access both their emergency management system, the right people, and to work and develop a relationship with the school children and all that, and the teachers and the parents. And I think actually having just somebody there with a weapon, I mean Florida can do whatever they want. But that's, I just don't think it's better than I guess nothing but I don't think it's it's really what we're looking for here we want to have people that can integrate with the schools and can be a real value and understand things and even look at the things before they happen whether it's school bullying whether it's you

[01:33:12] know other things that happen online concerns that may come up we can encourage we encourage people to use a safe to talk if they have a problem they can go straight around us and around the counselors to go straight to our dispatch center anonymously until they got a complaint we'll look into it So there's a whole lot of things that we can do that are a little bit different than just having somebody at the front door with a gun.

[01:33:33] Right. Well, I'll point again, but research shows, and these were actually implemented after the unfortunate events with Stoney Douglas in Florida and then the Uvaldo shooting where they implemented these things where they had the SSO. And again, their requirement was the person had to be, wasn't just Joe Schmoe off the street.

[01:33:49] They had to be former law enforcement within two or three years of recent history. so it's not uh just uh anybody coming off the streets. Well I thought they also had it's either that or military if I'm not mistaken I thought they could have military training which is really quite different than what you'd need as a school resource officer. No I didn't see anything about military training but um and then I know it was mentioned in the commentary from supervisor Umstead you mentioned it's always better to have somebody there but just keep in mind again those two school shootings in Stoney Douglas and Uvalde they actually did have um law enforcement on site

[01:34:23] who are who are you know caring and receive training etc but unfortunately things happen which which is a tragedy and you know like you said earlier there is no you can have all the all the people in place but sometimes things are still going to happen no matter what another question for you guys is say for example if a crossing guard who's i'll just use my district who's at sterling elementary school that's my okay my last question so say the crossing guard who's at sterling elementary school call sick that day currently the practice is if correct me for

[01:34:58] wrong is you would move the sro from park view or the sro from sterling middle to go cover and if that's the case why not have one of your auxiliary folks cover the crossing guard duty or a street deputy sure so actually that is what we do street deputies are the first to go but depending on the number we we staff a lot of crossing guards depending on the number of crossing guards that need to be covered in a morning the SROs are not the first ones to go so we do our best to keep the SROs in their school not have to pull them for crossing guards but depending on patrol availability and then as regarding our auxiliary deputies they are not on a normal schedule so if we know in

[01:35:38] advance that we have you know things we could bring them in but generally speaking because they're volunteers they're not usually just out you know during the morning hours or you know things like that to be able to cover those. So it is not our go-to practice to use the SROs. That's not our number one. They are already the fallback. Okay thank you. Thank you Mr. Kirshner. Thank you Madam Chair. Thank

you Sheriff for being here and I'm a big fan of this. I would you know since I've been on the board I thought that I was a little shocked that we didn't have SROs in our elementary schools honestly and I think there's nothing more valuable that we can do than to ensure

[01:36:18] the protection of our children, the working with our children, and this comes, quite frankly, begins at the school, and obviously the SRO program, everybody thinks about someone with a gun, but it's far more than that, as you have made me aware, and as I've done a little study, and obviously it's a MAD program, it's about building relationships, it's really about community policing, and that is building relationships within the schools, and for those of you who have had an opportunity to read about it. I think it's really an important program. So I'm a little disappointed and saddened that our school board did not approve it. Now, I do know that there has

[01:36:57] not been an opportunity to sit down with the MOU, and I'll talk about that in a second. But it is generally my experience, and you can just confirm this, that most of the, I mean, I represent the Police Benevolence Association. I was a prosecutor for many years, and I do a lot of defense work, and my general experience in most of the SROs that we have in the county have a real depth of experience before they even move into an SRO program as a deputy or an officer within the program. Is that a fair assessment as a general rule? Yeah, that's right. You can't even consider being placed into the program unless you have three years on the job and you have all the other training that I discussed. Yeah, and I find, and I don't know if it's just your department,

[01:37:35] but I find that these men and women are generally just have a tremendous demeanor about them and are perfect for for the position so you know kudos to you and your staff who've done a really good job for the ones that I know that have been placed in these schools that we currently have SROs in.

[01:37:53] I know you can you just briefly give me there's this is kind of a triad program fair I mean I'll just I'm just to move through because we're only 24 minutes it's a triad program basically correct it's a law enforcement education and mentorship that's really what the SRO program is that is that a fair assessment as well? Yes, and that's based on the National Association of School Resource Officers. We call it NASRO. Okay. That is their standard for their recommendations of implementing a school resource officer program, that we perform those three core functions.

[01:38:24] Okay, so kind of to the core of my question, that kind of answers my overall question, and we have had events where, I mean, I went back, someone actually sent me a notice from an event in 2019 today, where I think it was at Madison Trust Elementary, where we had several individuals invade the school and we had to send SROs over from another school. I mean, so it's not like it, and then they placed SROs in those schools. I recall as a result of that, that was the school board's decision, correct? That's my understanding. Yeah, there was an incident that happened at Madison Trust and unfortunately we were pretty close by and were able to get there

[01:39:00] quickly. Yeah, so, you know, obviously it was important then. I'm not sure why it's not entirely important to the school board now, except for the fact that perhaps, and I think this is going to come up that there is has apparently not been an opportunity for you and your staff to sit down with them and then their staff and really kind of go through a memorandum of understanding. Is that my understanding? As Lieutenant Colonel Sawyer talked about the MOU has to do with the middle and high schools and it's something that's. I understand but a new one with the elementary schools. We have not done that yes. So has there been an attempt to do so on either side and

[01:39:37] And because my understanding of some of the debate that occurred at the school board was, hey, we don't have a memorandum of understanding, so at this time we're not going to authorize it. But how long does it take to put one of those together? I mean, we already have a model to work off. Obviously, we have elementary schools. I can't imagine it's that difficult.

[01:39:54] Well, the thought process here was to, you know, get the funding and then get into those deeper discussions and make sure that we got that all worked out. The funding being the catalyst to try to help us get to that point. Without that, we're really kind of, it's hard to go forward.

[01:40:11] So it's cart before the horse, horse before the cart, depending on which way you look at it. Your understanding was, hey, we'll get the funding for it, then we'll sit down and talk about the process. That's right. The school board is saying, as I understand it, well, we haven't had a chance to talk about the process, so therefore we don't want them as of now.

[01:40:31] If we were to approve this funding and you guys were able to come to some form of an understanding, on how this is going to operate then I mean how long will how I mean assuming we go through a normal MOU process how long should that process take I mean a couple of months three months four months I don't know quite frankly that it would take that long because we already have a bottle as you mentioned to go you know go through but but I do think that that would certainly be a motivator for us to sit down and actually hammer this out I mean like I mentioned earlier in my remarks this isn't anything new this has been going on we've had this request for several years

[01:41:10] and I think that if we got the if we got the funding for this we'd be on on the right track to do that sit down and have some time to actually work it out may may take months may take a year may not ever happen I mean but it we need something to get the ball rolling here and this is this is where we can't get the ball rolling on this okay so if we were to approve you have to wrap it up I've been Mr. Kirsten I started at 23. Mr. Kirsten you gotta wrap it up I will thank you Madam Chair. So if we if we were to approve this as of now keep it in our budget process and I mean I'm kind of you don't have to answer this question I think ultimately would fall into

[01:41:50] unspent funds which we handle at the end of the year and we could spend that otherwise but you do believe that there would be time to actually structure something with this with the administrators of the school in the event that they wanted to do this which it sounded to me like they were open to it they just didn't want to do it at this point because we didn't have a memorandum of understanding that was that was my all right well that's good to know I appreciate it um I'm have you brought this forward in past years Mr. Kirsten I'm going to go to somebody else now because we only have 19 minutes left I'm going to go to somebody else now you have the power to add more time madam chair and I'm not going to I said 45 minutes I meant 45 minutes and if we

[01:42:28] get to the end and we haven't spoke I'll do it then but you I'm wrapping you up up now. Mr. LeTerno. All right I'll try to keep it tight. Quickly on the Uvalde issue because I've heard this before. The protocol that was followed there was for the officer to wait outside and not engage. Is that the protocol that the Loudoun County Sheriff's Office would follow if there was in fact an active shooter inside of high school? So definitely not and Uvalde and I'd say Parkland as well. Usually when you see significant tragedies like this you have a system failure.

[01:42:59] it's not usually one thing there's usually a there there is a system now law enforcement was a part of both of those but security protocols were the same so uvalde rob elementary school a door was

propped open um there's there's no security system when it goes to hardening schools if staff is going to prop a door open that you know you can have the best locks in the world there's you know there's flaws that happen there um the um uvalde response was uvalde consolidated independent school division it was their own police department's very small agency

[01:43:33] their training was substandard their chief was on scene and he made the decision to convert from an active violent incident which would be pursue the shooter and eliminate the shooter as quickly as possible to what he deemed to be a barricade which is why they waited in the hallway the problem was that was a horrible decision he never should have done that because they were innocent kids still in the school room that's not a barricaded situation if the shooter was potentially by themselves in a in an isolated room okay maybe I can go along with that but as long as you have kids in there that was a horrible you know wrong decision so the bottom line I'm sorry I'm sorry I'm going to move you on um so that's not what we would do correct I don't really view that

[01:44:10] particularly yeah Parkland was the same way their policies procedures now moving on so it was stated that the school board wasn't interested I'm going to read the text of the motion they passed which said they they were not supporting the funding and expansion of the program until the school board and the parties can discuss an MOU but it also said the Loudoun County School Board supports further discussion regarding expansion of the school resource officer program which I took to mean that they want to have more dialogue not that they were not interested they were not interested in funding in this particular budget year perhaps but they did in fact want to engage

[01:44:46] in further discussion with your department over a new MOU that could potentially cover elementary schools so will you in fact have that level of engagement with them they've apparently set up committee to have that? Are you open to doing that now to try to hammer out that agreement with them? Well considering that they've it seems like there's a predisposition to not even entertain this okay and if you go back a couple years you go back to 20 I'd say 2019, 2024, 25. There was a new school board though.

[01:45:19] What's that? The new school board there's new school board members. Well you know like I said the I think would be a motivator and would actually get them to sit down and talk with us would be if the funding was there. If the funding's there, then they're going to sit down and they're going to have to talk with us. If right now, I think they made their positions clear and that they're not interested in this, I mean, at least in a 5-4 vote there. But yeah, would we be interested in engaging with them? Of course. And that's why even when they asked for us to do a town hall meeting, we said, yeah, we've been wide open on everything. I would encourage you strongly to do that and keep working and talking with them. Okay, last question, which is

[01:45:58] about the SRO systems that we have today. So essentially there's one SRO per high school and middle school, right? - Correct. - So if somebody calls in sick, somebody has a flu, somebody's kid is sick, then what happens? There's just no SRO there?

[01:46:14] - Correct, there's no SRO there. If it's a high school, we pull a middle school SRO. - So that leaves the middle school without an SRO? - Correct. - But today you literally only have the same number of SROs as you do schools and that's it? - Correct. - Okay. - Thank you, Mr. Crony. - Thank you, Chair Randall.

[01:46:30] And thank you, Sheriff Chapman, for the presentation. So can you tell me how many calls for service there have been from the middle school to elementary school? So it sounds like the middle school SROs are having to go to the calls for service at the elementary schools.

[01:46:55] Correct. So the call for service data that we provided, all of those would be middle school SROs. to elementary school SROs. We do our best not to pull high school SROs to elementary schools unless absolutely needed. So it would be fair. I can't tell you exactly which, you know, which numbers, but the vast significant majority of those calls for service would be from middle schools down to elementary schools.

[01:47:19] - Yeah, I think I saw 588, is that correct? - So that number is the number of days that a school was vacant due to their being, and that's the number of school days, that a school was vacant due to there being an SRO, either on injury leave, illness, things like that.

[01:47:40] - Okay, and then can you go into kind of what, I noticed that you don't, you're not involved in discipline, and that that's kind of the line that's drawn, no, you know, take on disciplinary actions at the schools.

[01:47:57] That's with the school administration. Can you explain that? Because I saw you have a whole list of calls for service. And just explain what you mean by that, please. Sure. So all the research that's out there that shows SRO programs going sideways and leading to disparate impacts and things like that is when school resource officers are involved in school discipline decisions, as in whether a suspension is issued or things like that.

[01:48:26] The Latin County Sheriff's Office SRO program, we have not been involved in discipline for as long as I know. I don't believe ever. But that is a hard line. We don't get involved with the decisions that the school makes as far as discipline. When we respond to an incident, if it's something that can be handled through school discipline, which the bulk of incidents can be, that is the way that we go.

[01:48:48] So if it's a scuffle in a cafeteria or things like that, we are not looking to say, They, you know, well, technically it meets the legal assault, so we're going to charge, you know, things like that. We don't get involved in that. We will refer to the school for discipline in the vast, vast majority.

[01:49:07] Serious offenses, threatening to, you know, shoot another person, you know, bomb the school, bring in weapons to school. assault by mob, where like multiple students gang up on another student, cause significant injury, things like that. Those will result in criminal charges, but the vast majority of things that we deal with within the schools is referred back to the school to handle discipline as they deem appropriate. Okay, thank you very much. Thank you. Mr. Turner, Vice Chair Turner. Thank you, Madam Chair.

[01:49:41] I'm a data kind of guy, so this has been a real tough one for me. Sheriff, thank you for calling me and talking one-on-one. I really appreciated that. That was good. I am really torn on this issue for emotional biases that I've had for 50 years and what's going on in our society today and wanting to protect our kids. So I tried to dig up and find some data. These are some short quotes. This is a RAND study from 2024. There have been two recent meta-analyses of school violence in SROs and concluded that SROs do not reduce violence. The first is a larger study of

[01:50:20] factors that affect school victimization and violent behavior at school. This study concluded that SROs had virtually no association with any form of violence or victimization at school. The second meta-analysis focuses more narrowly on SROs and the authors report results separately for schools and students. They conclude that the use of police in schools has no detectable improvements to school crime or violence and is an ineffective practice for keeping schools safe.

[01:50:46] However, a closer look reveals that this conclusion is overly broad, unlike the results for school disciplinary outcomes. The author's meta-analytic results for school safety measure showed a large amount of heterogeneity between studies, blah, blah, blah. And that's not compelling to me.

[01:51:04] There are studies, but that doesn't make the case for me. From an emotional standpoint, I feel like the underlying premise of armed police officers in our schools is a manifestation of the bumper sticker platitude, the best way to stop a bad guy with a gun is a good guy with a gun, which I categorically reject. There's a Mount Everest sized pile of data proving the nonsense of that statement. However, I get the sense that that's a genuine conclusion that one side of the issue goes to. On the other side of that issue, I don't want to be an elected

[01:51:40] supervisor in a county where we have a shooting in our elementary school and we made a decision not to have armed police officers in the school. Also underlying this is my absolutely profound respect for the sheriff's deputies and the sheriff's force of law enforcement in this county. They're top notch, they're world class, I have total faith in them and I appreciate their service to the county, same for the Leesburg police. So I've got a bunch of mixed emotions rolling around in my head as to how to do this so I keep coming back to show me why this is a desperate need and

[01:52:14] why we should do this and honestly the conclusion I come to is doing nothing I don't believe is the right response putting SROs to the tune of five million dollars in our elementary schools I don't believe is the right response but we are already pulling off our high school and middle school SROs to respond to incidents in our elementary schools so there is clearly a need there that we need to address. I think Supervisor Le Turner is going to introduce a motion which I agree with, which I think is a fairly decent compromise. And I am going to finish by

[01:52:54] asking you, Sheriff, a really loaded question. And good luck on answering this question. What, in your judgment, is the compelling reason we should put SROs in our elementary schools? Well, if you look at what's going on across the country, if you look at the uptick in data incidents that have happened throughout elementary schools across the country, it's really quite concerning, okay?

[01:53:16] And what we're seeing, if you look at just our numbers, you're talking about an increase from just the past couple years from 500 incidents that required our attention to 1,500. And that's pulling middle school deputies away, school resource officers to handle the elementary schools.

[01:53:32] You mentioned the good guy with a bad guy, you know, a good guy with a gun versus bad guy with a gun. I kind of think in, like, you know, getting back to Supervisor Sainz, you know, questions and comments, the fact of the matter is that we do this job, it's not about that. It's about a whole lot of things.

[01:53:49] It's about counseling. It's about knowing your students. It's about knowing. And these things are preventive. One of the things that you and I had talked about on the phone call is how do you measure what you prevent? And if you've got a marked car in front of a school, you might have prevented something. And simply by the car being out there, somebody may have decided, hey, I wanted to go and do something at this school and I saw a car, I'm not going to go out there.

[01:54:09] So those are the kinds of things. None of these things, it's not like there was a lot of warning in any of these incidents that happened. And it's not like you could go back to Sandy Hook or any of these things and say, oh, well, we know something's going to happen because it's happened before. It never

happened before and all of a sudden it happened. So I think it's better to be better prepared than to not be prepared.

[01:54:28] and I think it's important that we have as much help in this area that we possibly can. - Thank you for that. Two quick points that I've wanted to make also. The first one is the same study, the RAND study, found that the perception of safety and security in the schools was demonstrably, measurably higher among teachers and students with an SRO presence.

[01:54:52] It didn't mean that was actually the case from a data perspective, But the perception that they were more secure was absolutely there. The other element on the downside that I forgot to mention, I would not equate our deputies with ICE at all.

[01:55:08] I understand the difference. I get the difference. But if I'm a Hispanic parent in this society today, and I have Hispanic children in a high school, the middle school, or the elementary school, I think my kids are going to be real, real concerned with an armed uniform presence in the school.

[01:55:24] That's not necessarily a rational answer, but I think it's reality. And I'm really reluctant to introduce a new element involving a uniformed officer with a weapon in today's national environment. Can I respond to that real quick? Absolutely.

[01:55:40] So I was just at last week, I did a D.A.R.E. graduation at Sterling Elementary School. Parents, everybody loved it, okay? Nobody, no concerns. Their instructor, they just love our D.A.R.E. instructor that was there. And then to your data, and I'm aware of that study, but I'm also aware of a study by the National Police Foundation and the COPS office that showed that in about 170 incidents there was evidence that school resource officers actually did prevent, either by finding a weapon, finding a gun, getting involved in something that prevented.

[01:56:13] And you're not going to know about those. All you're going to hear about is what happened at Evaldo. You're going to hear about, you know, what happened at, you know, these other places. fact the matter is is that there's a lot of things that are being done that that just aren't making the news and I think that's a problem with some of those studies good data points thank you if you don't mind if I could piggyback on that we actually talk about exactly what you talked about a lot across all aspects of the agency we we call it being safe versus feeling safe and a community needs both so we do a lot across our agency to make sure that our community not only is safe but also feel safe.

[01:56:47] We watch national events. We watch international events. And if there's a shooting at a shopping mall in somewhere United States, we will send extra presents to Dulles Town Center Mall. Not because we believe Dulles Town Center Mall is any more at risk that day than any other day, but we understand that people who are going to that area may feel less safe because when they left their house, they saw it on the TV or the radio.

[01:57:11] So we will add staffing. And we do that across this county because you're 100% right. We need to nurture actual safety and feeling of safety. Thank you. So I can't possibly say all I want to say in this amount of time. This has been a very frustrating conversation, and I do think we need to have the conversation.

[01:57:33] First, I want to say we have a school-to-prison pipeline issue in our county, and it's not because of the share of deputies. If you know anything about school-to-prison pipeline, and I am a subject matter

expert on this issue. School to prison pipeline issues are much more about what's happening in the schools than what's happening with law enforcement.

[01:57:55] Could law enforcement make it worse? Yes. But it's much more about little Kevin being called on when he has his hand up, little Kareem not being called on when he has his hand up, little Kareem after a while feeling like he is not important, feeling less than. If I have time later on, I will describe the most salient issue that happened in one of our high schools that was a really dangerous issue in the Sheriff's Department.

[01:58:20] Actually, it was Leesburg. The Leesburg police were never called. And so if you do not know what you're talking about with school-to-prison pipeline, I'm happy to help you with that. I'm happy to introduce you to this material. I'm happy to talk about it. But what is offensive to me is this. The continually talking about school-to-prison pipeline and what it does for black and brown kids do not use the pain of black and brown people to further your political agenda when you don't know what you're talking about. Don't do that. I will be happy to have this discussion with you all, but you don't know what you're talking about right now. Secondly, the stat that Ms. Umstead

[01:58:58] gave, Sheriff, with due respect, the numbers do not meet out what you all are saying to us today. In 2023 there were 364 calls to the elementary school for crossing guards there were 214 for whatever follow-up is and there were I'm sorry I did not write the number down I apologize for whatever directed patrol is I have to ask and what has become very concerning to me is what is happening in our elementary schools that we are calling the sheriffs armed sheriffs to our schools

[01:59:37] this much because it's not for issues of safety it's not for issues of it's not no in no world to 364 times they be they're being called for crossing guards that shouldn't happen so I am very concerned about why that is happening. This whole discussion has uncovered for me a different concern. I do want to say that when people say counselors, not cops, that there's some truth to that. But I want to say that between 2018 and today, we have put 510 mental health therapists

[02:00:15] in our jail. This board has said yes to five, I mean, in our schools, this board has said yes to 510 mental health therapist so we are doing all types of mental health and we should do that we should do that see I have been a little frustrated with the well you all have it why don't the schools of course the school should have what we have and more and if you hit if you enter a school today you will find out that you can't just walk into a school anymore our schools are hardened you can't walk into the schools without showing your ID and getting buzzed in

[02:00:51] And then you go to the office, and you can't walk into the office without showing your ID and getting buzzed in. You cannot even get to the schools. And they do have SOO officers in every school. The same allied officers we have out there, they have there, armed versus unarmed, but they have them.

[02:01:11] And there are other school security issues that I'm not going to talk about because it's not really appropriate to talk about all the school security here. The school should have that protection, and they do have that protection, and I think that we need to actually say that.

[02:01:27] I am concerned, and this is a question I'll ask the schools, because when I ask were SOOs or SROs involved in school disciplines, the answer was SROs were not. SOOs were on day-to-day school discipline. Somebody's going to have to tell me why, because that should not happen in elementary schools.

[02:01:45] It just should not happen. I don't believe that you all should really be, and you just said this, willing to be involved in school bullying. I don't think that until it rises to a new level. I think if we put an armed officer in the school, it should be for issues that are literally of danger.

[02:02:05] And I do not know how you get 1,600 phone calls to a school when 364 of them for crossing guards, when 214 of them. So that number sounds really high. But then you dig into the number, and when you dig into the number, it is nonsensical.

[02:02:21] And with respect, that's not for you all to even answer, because you all are not calling yourselves to the elementary schools. You're being called to the elementary schools. And like I said, if you have time later on, I will talk more about the issue that happened in Loudoun County. It's probably the clearest description or the clearest example of how you get to a school-to-prison pipeline.

[02:02:43] But please believe, does law enforcement make it worse? It could, but school-to-prison pipeline issues are issues that happen in the school. And if you ask Dr. Ellis Williams that, if you ask Dana Scanlon that, if you ask Aaron Spence, he'll tell you that.

[02:03:03] So I'm offended when people are talking about this and you do not yet know what you're talking about. I'm going to make a motion, and then after I make the motion, I'll explain my motion. I move the Board of Supervisors, remove the School of Resource Offices, I'm sorry, the Committee as a whole, and now I'm going to move and make a motion.

[02:03:24] I move the Board of Supervisors, remove the School of Resource Offices, Elementary School of Phase I of four resource requests from the Sheriff's Office. The fiscal impact, I'm sorry, is \$5,317,409. That's the motion. I'm making this motion because, with respect, Sheriff, I'm going to respectfully disagree with you.

[02:03:45] I don't think you come to us first and then get funding and then go work out the MOU. I think you go work out the MOU first. And you and I have been talking about this for everyone's knowledge. We've been talking about this for a long time. And I said to you not long ago, I didn't know you had not been talking to the schools.

[02:04:00] I didn't know that. It is almost never. I can't think of one time where we have funded something where an MOU to where we're funding it to has not been done. We control the budget, they control the school buildings, and they have not said we don't want them there.

[02:04:20] That's not what we said. What we said was exactly Mr. Letourneau-Red. They said they want you to come, they want you to talk, they want you to have the discussion. And I think it's things like, put me on the clock, I think it's things like, you know, if you have an MOU, how do you deal with new or divergent kids?

[02:04:36] If you have an MOU and a school where, an elementary school where a quarter of the kids don't speak English. Would that sheriff deputy speak Spanish? I think it's things like that they want to see in the MOU. I do not think it's unreasonable to say that the MOU, that whether or not they should go in the schools comes before the funding. If we fund this and they've already said no, that seems illogical to me. So I know that they're setting up a subcommittee to work with you all and to talk about this and I and I am happy

[02:05:16] about that I do not believe that they had a predisposition just to say no I think they've said we want to understand and we want to talk about this and wonder how that looks it's the same thing that happened when it did go into the to the high schools in the middle schools you all get the MOU with them first and then you got the funding. And so I think that is the logical way to do that. And so my motion right now is because they have said, our colleagues on the school board have said, they're open to these questions. They're open to this discussion. They want to have it with you. They've set

[02:05:51] up a subcommittee to have it. Come on over and let's talk. And I do believe that is the appropriate order in which we should do this. Thus, that is my motion. I will say in my on the other side of this motion is for all the yelling and screaming and with respect I don't think this should have been done on social media I don't think that's I don't think things things like this are social media conversations these conversations are too important too deep to have these are not social media conversations but I will say this in the end after you talk to the school board and all is said and done the truth is if somebody walks into that school and kills

[02:06:30] one child. Not one person holding a sign out there has to look in the mirror that I do. Not one person. Not one person holding a sign out there is going to look at a mother and say, well, I saw these stats and I saw this number and I saw this report. You can't do that. I have to look in the mirror. I have to look at that parent. I have to look at my children. I have to look at my God. So I appreciate everyone's input, but in the end, the truth is I also have to live with myself if someone walks into a school and i don't care if it's if it's five million dollars a year

[02:07:06] in each and every seven-year-old and loudon county schools are worth five million dollars a year and more so i do believe you have to go to the school board first to lcps and have this discussion and after the discussion's finished based on what happens with that discussion we are willing to have another discussion next week but i think that this is premature right now thank you miss brixman well thank you madam chair i'm definitely happy to support this motion since it's um exactly the motion i had drafted and sent out to everybody on friday morning um so very happy to support this

[02:07:45] motion um i really i've one uh additional question for um the sheriff if i might madam chair of course um you mentioned red flag laws and uh that you were kind of supporting them a little bit more now because some language changed um data does show that we're low on on um issuing those and also i had asked a question a while back about the uh funding that was put forth by the biden administration the grants to help with red flag laws did you guys apply for those grants i'm not

[02:08:22] aware of uh whether we apply for those or not okay because when i asked you about it you guys said you would look at everything. So also I have asked that perhaps you guys work with the Be Smart campaign which educates folks on gun safety storage so I'll make that request again if possible. In fact I believe the reason we're here right now is because at least the last two school board chairs and maybe the last three school board chairs did not want to expand this

[02:08:57] program and so in those discussions when they did not want to expand this program this path was taken instead. I'm really glad that the schools are going to set up a committee hopefully so we can have a transparent process about the MOU. I know that the MOU kind of went through admin over the last year and that's not really the place the MOU should be debated. It really should be a transparent process So hopefully we can accomplish that.

[02:09:28] I do think, again, and I'll repeat, the right response here is to listen to the school board. They are a duly elected body. I'm glad that we're doing that today. They have made their wishes known, and hopefully we can follow their wishes.

[02:09:44] And also I think that it's really critical, if this conversation does move forward, that we engage communities who rightly or wrongly, I think rightly, are questioning their safety if this were to happen in elementary schools.

[02:10:03] And that's just apparent with New Virginia majorities, over 400 people on their petitions saying they don't want this. And I looked, the majority, vast majority of those people who signed that petition are in Loudoun County.

[02:10:19] So it's not something where they can't gather data and signatures from other counties. So that would be my wish. And again, I'm happy to support the motion. Thank you, Madam Chair. Did you say are in or are not in Loudoun County? Are. Are in Loudoun County. They are. Yeah, there was maybe, I saw Centerville maybe once or twice, but vast, vast majority.

[02:10:38] I mean, I'd say like 95%, maybe 98% are in Loudoun County. Thank you. Thank you. Ms. Umstead. Ms. Umstead. Oh, thank you. - I think Supervisor Glass's light was on, but I'm happy to go. I will be voting against the motion.

[02:10:58] I very much appreciate the Chair and the Vice Chair and Supervisors Kirshner and Letourneau pointing out what the school board's position appears to be, which is they want to have further discussions.

[02:11:16] They did not foreclose the opportunity to enter into an MOU on this. And given that fact that we don't have a hard no from the school board, I think the wise thing would be for, regardless of how the vote goes, I think the wise thing for us would be to keep this money in the budget and enable the school board and the sheriff's office to sit down and hash this out otherwise where it will probably be allocated to other uses and if the school board says yeah having talked

[02:11:56] to the sheriff we're all on board then this board has to go scrambling to find those funds elsewhere so i i will vote no thank you thank you mr glass thank you madam chair um and i will support this motion, Madam Chair. So I appreciate what Judge Fleming had stated earlier, and that was

[02:12:27] being a good steward to the public purse. And listening to what my colleagues have stated, I would like for the Sheriff's Department to have those conversations with the school board.

[02:12:44] I also have been listening to what our, you know, some of our principals and some of our teachers have been stating that they would like to see possibly different programs that the sheriff's office is working to support them, other than what we've been discussing.

[02:13:09] I know that Moms Demand Action had come in and they had also stated about different things that um you all could be working together with to support our schools um so you know i appreciate you all coming but i will not be supporting this thank you you will not be supporting the motion the motion thank you man i mean i will be supporting the motion sorry manager mr kirschner thank you madam chair um it's pretty evident to me that we have to start somewhere

[02:13:44] And so I obviously don't support the motion here to remove this from the budgetary process because what we do is we just set this back further. It's pretty evident to me that we either start with

requesting the funding or we start with an MOU or wherever.

[02:13:59] But if we start requesting the funding, then we can have a sit-down and have a discussion about how this is actually going to work. And guess what? If that doesn't happen, what's the worst case, fellow supervisors? This goes into fund balance. And then we can figure out what to do from there.

[02:14:15] But instead, what's, I think, Obviously, we're going to see where some of these motions go, and Supervisor Letourneau's motion goes, which will use some of these funds. But, you know, if these funds are freed up, it just delays the process an additional year.

[02:14:31] And I think I agree with Supervisor, with Chair Randall, and that is \$5 million is worth every single student we have in this school, 100%. And we should do everything we can to move this process alone, and I think removing this from the budget actually delays it and hinders that.

[02:14:48] Because if we keep it in the budget, we have multiple months between now and when the fiscal year starts in July that they can have discussions and come to an understanding. If the school board still wants to reject it, you know what? That's on them. But this board needs to say, hey, this is a priority for us.

[02:15:07] We're going to fund it, and school board, if you choose not to fund it, that's up to you. Thank you. Thank you, sir. Mr. Sainz. Thank you, Madam Chair. Just out of curiosity, the MOU that was just signed in 2025, when is that end, the current MOU?

[02:15:25] So the current MOU has not been signed. It was not signed in 2025. It's still under revision. Okay. Interesting. So when, did you have a discussion when the plan is to sign this, or is it just open-ended?

[02:15:42] Like what? So the last meeting was a joint school board board of supervisor committee meeting, if memory serves back in November and we are scheduling with the school leadership to do a follow-on we have not had conversations since the joint committee meeting in November wow okay that is I thought okay I thought the MOU is wrapped up and agreed to and everything in last year at some point no no it's still under revision point of clarification that's the MOU for middle school

[02:16:18] in high school? Correct, yeah. And that's not, oh, okay. That is, that's very interesting to learn. Do we, Madam Chair, or, I don't know. You have time still? Oh, I was, well, I don't know, do you or Mr. Hamed, do we have anybody from the school system here tonight? No, they'll be here on the next meeting. We can ask those questions. Okay, yeah, that'll be a good question to ask. Um, okay, yes, I will, I will support the, the chair's motion, because I do feel, you know, as the school board voted and said they would like to have some more discussion. So I think we should have that discussion. If the MOU is not fully signed, then there should be more conversation

[02:16:55] discussion. I think it's premature to vote to fund the budget if there's no agreement whatsoever. So I'll support the motion tonight. Thank you. Thank you. Mr. Letourneau. Yeah, so I think that exchange has kind of illuminated some of the reason we're here and some of the problem which is that the the mou process has been really slow rolled for a long time and i'm not going to sit here and assign blame but when you listen to the school board discussion it's pretty clear that some of the school board members were frustrated as well and that's why they set up

[02:17:29] their own committee now to try to move that forward and that's why i think hopefully there's a bit of a reset now on how this moves forward including the discussion on elementary school sros because

heretofore I don't believe it was a school board issue we'll say it was an issue being handled by administration and the momentum was very slow and so it's understandable there's no way I only have 20 seconds left now you have a whole new three minutes well I won't take that I'll be fair but

[02:18:04] I can understand why the sheriff's office is frustrated because from their perspective they want to have the discussion the school board in the past has said well there's no funding and then the board of supervisors says well there's no mou and then there's just kind of ping pongs back and forth so i think regardless of what happens coming out of this meeting tonight i want the message to be that that's going to stop and that there needs to be an mou that discussion needs to happen from my standpoint i would support funding if that gets done and the school board wants to do it and I want that message to be clear as well, which is the Board of Supervisors, even if Chair

[02:18:44] Reynolds' motion passes, is not saying no to funding, and we're not saying let's pass the buck, we're telling the schools let's get on it. And so if nothing else, this conversation has illuminated that issue, and I think has also, to some extent, galvanized some of the school board members to try to push it forward.

[02:19:03] So I think that's what really needs to happen at this point. I do think there's a compromise for this moment, which I will discuss after this motion, hopefully. But regardless of what happens, the message should not be that the Board of Supervisors is saying no to school resource officers in elementary schools or anywhere else, for that matter, that comes out of this, regardless of whether this motion passes or not.

[02:19:26] We're saying let's go and let's actually get the MOU done, let's quit the cycle of whatever it is, and then let's have the secondary discussion that the sheriff has asked to have, which I think deserves to be treated with respect by both bodies.

[02:19:42] Thank you. Mr. Kirshner, a couple nights ago when we had a motion for three zoning officers, you voted no on that discussion because you said the discussion wasn't complete yet and we needed a complete discussion before we did funding. I know school resource officers are more important, but I do want to just slowly end that moment.

[02:20:02] So I'm just going to say that to you. Some years ago, there were two kids walking down the hall at one of our Leesburg High Schools, doesn't matter which one, near Super Bowl time. They both had hats on, one black kid, one white kid. Dean walks down the hall and tells the black kid, take your hat off.

[02:20:19] Black kid said, why didn't he have to take his hat off? what ensued was a fairly large argument between the kid and the resource and and the dean to send the kid to the office kid gets to the office black kid gets the off and he said why and i'll take my hat off but why didn't he have to take his hat off back and forth back and forth back and forth eventually the kid was suspended and out of school for two days law enforcement was never called law enforcement was never called but what you just had was a frustrated kid an embarrassed kid a kid who's angry, and a kid who would have been by himself at home for two days.

[02:20:56] That's school-to-prison pipeline. Now, law enforcement could have been called, and it could have been worse because there could have been charges made or something, but they weren't. School-to-prison pipeline is much more about what happens in the schools.

[02:21:12] That ended like this. That kid's parent came home and said two things to him. She said, one, when an adult tells you to take your hat off, take your hat off. But she also marched him back up to that

school and said, guess what? This is coming out of my kid's record, and he's not suspended. And that's exactly what happened.

[02:21:28] But not all kids have that. Not all kids have those parents. And if we do not think there is discrimination in LCPS schools, you're wrong. I raised two children, two boys of color in LCPS school. I saw it on a regular basis, and I was an incredibly involved parent.

[02:21:46] And more often than not, there were no sheriff's deputies or police officers involved at all. So let's really have the discussion, which I think has been illuminated here, of what the heck is happening in our schools and why, whether it's training, whether it's not enough people to ratio in classrooms, whether it's implicit bias, whatever.

[02:22:11] Let's have the discussion. And let's recognize that if 1,600 phone calls are being made, but 300, almost 400 of those are crossing guards, that's not a stat I'm going to rely on at all. The last thing I want to do is, Ms. Demestri, I know that you're speculating right now because it's between the school board and the board of supervisors.

[02:22:34] I do think that the school board should go first. And quite frankly, I think that every one of my colleagues who voted the other day did not put those three zoning officers in place thinks that as well. Because that's the reason you gave us that vote. But if you could speculate, how long could an MOU take?

[02:22:55] So thank you for being clear that the county's not involved in this. It is between school administration and the sheriff's office. If it was us and the sheriff's office, we would be able to do this within six months, year at the most.

[02:23:11] Six months to a year, if it was us. Yes. Okay. Maybe even faster, but... Okay. Well, hopefully that can be done in that time in the schools. I made the motion. Supervisor... I'm sorry, Vice Chair Turner seconds the motion. Please say aye. Aye.

[02:23:27] Opposed? Aye. Any abstentions? I thought you would. That motion will pass 6-1 with Supervisors Kirchner and Amstead opposing. Supervisor Letourneau abstaining. Are there any other motions regarding the Sheriff's Department on the dais right now?

[02:23:43] Yes, Madam Chair. There's a motion from Mr. Letourneau. Mr. Letourneau, I'd like to make your motion. I would. I move the Board of Supervisors add five school resource officers and one sergeant to establish an SRO floater group to assist in covering vacancies for existing school resource officers in high schools and middle schools.

[02:24:00] Motion is made and seconded by Mr. Crony. Would you say that a little louder? I'm not sure that was. Did you guys all hear that? Did you hear that? Okay, I'm sorry, then I guess it's just me then up here. Never mind, they heard it. So would you like to have an opening on that motion?

[02:24:17] I would, Madam Chair. So I think what this process has also illuminated is that as it stands today, we have a shortage within our SRO system. We can have a lot more debate and discussion and research into why deputies are being called to elementary schools, but the reality is they are being called to elementary schools.

[02:24:39] Maybe they sometimes shouldn't be, but they are. In some of these cases, like the threat assessments, for instance, there was over 300 of those in elementary schools, I believe, last school year.

Those were time-consuming. I know they are, 'cause I'm familiar with some of these situations that happen.

[02:24:54] And it takes time for an SRO to be sitting down with the principal, to bringing in other members of the command staff to deal with that. And in that time period, there is no coverage at the school that they came from. Now, when a schoolteacher is absent in school that day, LCPS doesn't say, okay, nobody in that classroom today.

[02:25:15] They have a substitute teacher. We don't have substitute SROs, and we should. If we're going to have an SRO program, we ought to properly staff it. Same discussion, really, we just had with fire rescue not that long ago, where we were talking about the amount of overtime, holdover, all kinds of things that they have to do to keep that staffed.

[02:25:33] I don't think the sheriff's office should be in that position. I don't think they should have to decide, well, you know, we're going to have this school open that day. Also, just simply people get sick. I mean, that's human nature, you know, or something happens. Some of these deputies have their own children. I know several that do, that are SROs.

[02:25:51] They could get sick. I mean, you all know, life happens. So this is simply creating a unit of SROs that will serve to fill in those gaps that we know exist today, that we've seen the numbers on, that really is a problem.

[02:26:07] And I think it would help, yes, with the elementary schools when those calls happen, but also just with all these other circumstances. It does not require a change to the MOU. It does not require the school board to say yes to putting SROs in elementary school.

[02:26:24] It simply provides an existing resource to the program as it currently stands. It is something that I have engaged the sheriff's office in, and I think that they're supportive of this and would take advantage of this resource and make it work.

[02:26:41] Staff has the money involved in this. I believe it's about \$2.3 million, so that probably would get put in here, but that would still allow for a significant remainder, and it's a reduction on the original request. So I hope that this is a reasonable pass forward that all of you will support.

[02:27:01] Thank you. Thank you. Ms. Brixman? Thank you, Madam Chair. Sheriff Chapman, what happens right now when a middle school or a high school SRO cannot be at the school? If they're sick or, you know, they have some other emergency? So I can take that. So if it's a high school, a middle school SRO from that same cluster will roll up to the high school. If it's a middle school, that school is vacant for the day. Okay. And how often can you say has that happened?

[02:27:30] It happened significantly. I believe the, I think this past school year, there were 580 school days. Now, obviously, every day, because there's multiple schools, you can have multiple vacancies on the same day. But I think there was 580-some days where a school was fully uncovered because an SRO was out.

[02:27:50] And that would have been a middle school and not a high school because they would have. Well, I guess it could have been. What happens if a middle school doesn't have the SRO coming? if a middle school doesn't have an SRO, that school remains empty. Correct. Okay. And Madam Chair, if I might ask Supervisor Letourneau a question, what was the budget impact again?

[02:28:10] I'll defer to staff on that number because we had done this as a reduction from the original and our originally when we computed this. So 2,379,000. Okay. And that's for five. And then it's five plus a sergeant. Six. Five plus a sergeant. Six total. Why do we need a sergeant aren't there already supervisors for these SROs? I can speak to that so the span of control within the SRO unit is currently we have three sergeants for 30 SROs so they're at 10 a

[02:28:43] piece so to add five more their their span of control is already pretty high so we would request another one just to assist with that span of control. Okay and has anybody gotten any comment from the school system on this proposal i i have i've had i've talked to our colleagues i talked to a colleague on the school board okay has the sheriff's department or mr letourneau i have not i put this together over the weekend so okay okay um i i'm unlike i don't think i'm going to support the motion i don't know that lcps has been consulted on this um so i'm not going to support

[02:29:23] motion thank you thank you madam chair um i will be supporting the motion um and i appreciate supervisor letourneau's work on it with the sheriff i also appreciate the fact that the sheriff was able to talk to vice chair turner i have had conversations with a few members of the school Board who are supportive of this. So I'm optimistic that this is a good start, doesn't go as far as I

[02:29:56] would like to see it go, but at least it begins the process of covering the schools when the SROs have to be out responding to problems in the elementary schools or elsewhere. So thank you to the sheriff and his team thank you to supervisor letourneau and uh vice chair turner for working on this mr kirschner thank you madam chair i'm certainly in support make sure i have three minutes not that i'm going to use them all but last time i think i was kind of short

[02:30:34] twice um so i'm going to certainly support this motion i think this is a i wouldn't call it a compromise. I think I call it another way of approaching what I perceive as a real vacancy and an issue that we have in the county that we've had for many years. We have the money to address it and obviously the majority of this board was not willing to fund the full request by the sheriff although I still maintain that we could have funded it and we could have at least got significant process done in the MOU and got it funded later in the year and I don't think further delay is wise.

[02:31:12] But nonetheless, this, I think, doesn't really need school board approval because it's working under the current MOU, which apparently they are working on renewing and whatnot. But again, it does exactly what we're doing. It just does it a little more robust in a manner to have these floating members.

[02:31:30] That's something we can fund under the current practice. And so to suggest that, well, the school board hasn't weighed in on this, they've already approved and have a program for our SROs in our high schools and our middle schools. And so we're adding to this so that the sheriff can do a better job.

[02:31:47] And so that when we do have vacancies or do have additional calls to elementary schools, we can better respond to that. So I don't know why we would not support this. But thank you very much, Madam Chair. You didn't use it all. You were right. Mr. Crony. Thank you, Chair Randall. so I'm going to support this as well. I want to reiterate that middle and high schools have had SROs for 30 years, so we've had this program, and I was surprised to hear that some middle schools weren't covered. I was very surprised to hear that in your comments and also in some of

[02:32:24] your answers to questions. This is within the existing MOU. It is about middle and high school SROs, it is not about elementary school SROs. I'm happy that Supervisor Letourneau read the motion from

the school board. You know, they're looking for more discussions. They're looking for, you know, they'd have to do a whole nother MOU for elementary students, elementary schools. So I do want to make it clear that this is with the existing MOU, we just talked about the fire and

[02:32:57] Rescue Department needing more staff to cover for trainings and for sixth leave the fire marshals and you know that's what this is doing so that we have coverage at every single elementary school and middle school in Loudoun County no no sorry every school high school and middle school in or yeah middle school in Loudoun County not elementary of course but you know these floaters This will really give flexibility to the schools that are covered, and I think it's needed,

[02:33:35] and you know, I think, you know, they were absent 588 school days, I saw that, and that's just not acceptable. So this will provide coverage.

[02:33:50] I think most parents thought that we had coverage. So, again, I was really surprised to hear that we didn't have coverage at the middle schools, and I'm happy to support this. Thank you. Thank you, Mr. Crony. Mr. Sainz. Thank you, Madam Chair. You didn't ask for this originally, to have coverage for these occurrences when there's, I guess you could say, people on vacation sick or whatever have you.

[02:34:16] So why didn't you ask for this if there was an issue? So we did ask for this in a previous year. The working thought with elementary schools is that we would operate under a similar paradigm where once elementary schools were staffed, if there were middle school vacancies, they would roll up to the middle schools.

[02:34:34] We would just have a larger pool of SROs to be able to pull from to cover middle schools if we needed to. So if this was approved with the five officers and the one sergeant, when they're not backfilling, what would they be doing? So the majority of days, that number five comes from the number of days that they're out.

[02:34:56] So the majority of days they would be actually assigned to a school. So I don't think there would be a lot of days where they're out floating around. If they were, they could float, they could check in on the other schools that are. So hold on. So if these are approved, where would they go?

[02:35:13] Would they be on the street and then taken off the street if somebody calls sick to fill in the gaps? Or would they, you would double up in the middle school and high school? So quite frankly, we have to figure that out exactly. I don't necessarily have a specific plan for that. A lot of days, though, there are known vacancies.

[02:35:30] So the majority of days they would be assigned to where a known vacancy is. So a high school SRO calls out sick or is on injury leave, they would be assigned to cover that high school. So they would have an assignment on the vast majority of days. If they were not, so if all the schools were covered and we didn't necessarily have to have them there, then they likely would be answering calls for service in the field.

[02:35:53] Okay. All right. Thank you. I wish that in this whole discussion we had actually had a discussion about the systemic prop issues in society that is causing this to be. I wish we had had a discussion about guns and the proliferation of guns in our society.

[02:36:12] I wish we had a discussion about mental health of our kids and the impact of social media, especially on mental health of our kids. I wish we had had a real discussion. I don't think this should have

been done on social media.

[02:36:27] And I don't think this should have been a political discussion at all. I just don't think it should have been. And I certainly wish we had have had a more substantive, deeper discussion. And I think that we're the county that can do that. If there's a county that can have a substantive discussion about some of these things, we're it.

[02:36:45] And so as we go through this and as the school talks to the sheriff and if we talk, let's try to do that. Let's try to raise the conversation to where I know Loudoun County can go. I believe in us. I believe we can have a different discussion. Although we haven't discussed it at all yet, I do want to say that I really thank you and support what's happening with the ADC.

[02:37:07] The other positions that we haven't discussed today that we are supporting are the opening of a new facility. That facility will largely be a facility that will help with behavior, health, and different issues in the jail because, you know, people do not like when I say this, but I do say it. There are a lot of things that Sheriff Chapman and Phyllis Randall do not agree on, but we have been in lockstep when it comes to the mental health issues, mental health issues in general. So the fact that we're opening a facility, a new facility that will

[02:37:42] focus on mental health, substance abuse, substance use, substance dependence, so that when people go to an incarcerated setting, they get treatment. They're there anyway. You might as well do something with them in Mountsboro Treatment and GED programs and job training and all those things to come out of the jail with not just being clean, but being in recovery and actually having some mental health treatment in a jail, that is huge and it will cause less recidivism and just better life quality.

[02:38:19] The other position is the medical director at the ADC. Medical directors at ADC are vitally important. Those are real human beings that are in those jails. Some have diabetes, heart problems, they might be pregnant, whatever. They're real people. So we need to actually treat them humanely and with dignity, and the medical director will do that.

[02:38:38] The work that's being done in our ADC is pretty impressive. I don't know where Mr. Mosier is, Chief Mosier, you're back, there you are. And I want to acknowledge, as a mental health therapist who spent almost her whole career with offender populations, juveniles and adults in jails and prisons, I will say I am very pleased to see us stepping up to the plate to take care of people who have mental health issues in our jails and prisons.

[02:39:06] Thank you for that. Would you like a closing? No, just I think that this is a good path forward for now to try to address the shortfalls that we have. And I hope that the board will support it. The motion was made by Supervisor Letourneau and seconded by Supervisor Tacroni. All in people who say aye.

[02:39:21] Aye. Opposed? And are you abstaining? So was it 631 with Supervisor, I'm sorry, 6, yeah, we don't have that many, 621 with Supervisor Bricksman, and was it Glass?

[02:39:40] Abstained and you, I mean, opposed and then you abstained. I think that's it. Are there any other motions? Sheriff Chapman and your whole command staff, which is everybody, the entire command staff is here today.

[02:39:56] You all have tough jobs, and you do them well, and we appreciate that. Thank you very much, and please extend that thanks to your line staff. All right. Thank you, Chair Randall and the board.

Appreciate it. Have a good night. Supervisors, we need a break before we go into the CIP, so let's take a 20-minute break and go eat.

[02:40:20] i'm sorry i thought you were banking stuff enough of it okay thank you

[03:12:14] all right mr vice attorney is back so he says now we can start hello how are you all thank you for waiting we do appreciate it you went from first on the agenda to not first on the agenda anymore we do appreciate that um let me get to the place of my ipad we are ready when you all are all right good evening chair randall and board members YOU HAVE RECEIVED A CIP WORK SESSION ITEM THAT DETAILS THE FINANCE COMMITTEE'S DELIBERATIONS AS WELL AS A QUESTION RESPONSE PACKET THAT CONTAINS RESPONSES TO THE REMAINING CIP QUESTIONS THAT WERE RECEIVED. YOU ALSO RECEIVED A SUPPLEMENTAL PACKET THIS AFTERNOON RELATED TO THE

[03:12:53] SIDEWALK AND TRAILS PROGRAM CONTAINING SOME POLICY ELEMENTS FOR DISCUSSION WITH THE BOARD. WE HAVE A BRIEF POWERPOINT -- WHAT TIME DID THE SUPPLEMENTAL PACKAGE GO OUT? THAT WAS -- WHAT ABOUT -- I'M SORRY -- RIGHT AROUND 1:00 P.M.

[03:13:08] really huh okay or we'll review it in the presentation okay thank you because yeah okay um so we'll we have a brief powerpoint that we'll go through uh to orient you to the committee's actions and the supplemental item so turning to the finance committee's recommended cip the board's budget process directs the cip to the finance committee for deliberations resulting in a recommended cip for the board's review and approval the work sessions occurred on February 24th and March 4th and resulted in one funding amendment and two motions to

[03:13:47] send funding consideration for three projects to the FY26 year-end fund balance discussion. Additionally, the committee directed staff to provide for the work session tonight an analysis of the traffic at Route 15 Hogback Mountain Road, as well as any relevant updates to the Route 15 safety and operational study, including the cost of turn lanes, and that information was provided in your staff report.

[03:14:09] Okay, so the one amendment the committee made to the proposed CIP included reallocating a portion of the funding for the Belmont Ridge Road pedestrian crossing of the Dulles Greenway to a newly created Partlow Road Improvements Project.

[03:14:25] The Belmont Ridge Road pedestrian crossing project was added to the CIP during the FY26 budget process with funding for design, land, and utilities planned for FY30 through FY32 and construction in a future fiscal year. This scenario takes the funding in FY30 through FY32 and a portion of the future fiscal year construction funding and allocates it to Partlow Road.

[03:14:48] And this slide just shows the funds that remain for Belmont Ridge Crossing in a future fiscal year on the top portion of the table, effectively delaying the development of this project. The Partlow Road Improvements is a new project that was not previously identified in the CIP.

[03:15:05] This project is associated with potential future use of a training center property that Loudoun County Public Schools intends to surplus to the county. It also addresses safety and traffic issues at Cedar Lane Elementary School, which LCPS is supportive of. The cost estimate for this project is roughly \$9.4 million for all phases.

[03:15:25] And this slide shows the financial information associated with Partlow Road, again, using the funding from Belmont Ridge Road Pedestrian Crossing in FY30 and 32 in the future phases. excuse me, a

portion of the future funding needed to fully construct that road.

[03:15:42] And this slide provides the motions based on the Finance Committee's recommendations. The first is that the board adopt the FY27 proposed CIP as amended by the committee as well as other capital funds. Also to recommend that the board send \$500,000 in planning funds for the Southern Service Center to the FY26 year-end fund balance discussion.

[03:16:02] and to recommend the board send 120,000 for the town of Hillsboro Old Stone School renovation and 308,000 for the town of Lovettsville's second water tower to the FY26 year-end fund balance discussion. Next is a discussion on the supplemental item that went out this afternoon regarding the sidewalk and trail program. So the purpose of the supplemental item is to clarify the board's expectations for the administration of the sidewalk and trails program. As you know, this program addresses missing segments in the pedestrian and bicycle network with projects

[03:16:38] prioritized according to the criteria established by the board. Staff has received questions during the FY27 budget deliberations about the scopes of these segments, as well as proposals to swap prioritized segments, either for other segments in the STP or for non-STP projects. In light of this, staff is looking for guidance from the board on three policy issues that have come up. In terms of the scopes of the STP projects, staff acknowledges that the preliminary concept of segments may evolve over time, especially as development occurs. DTCI staff will engage with board

[03:17:13] members as they finalize scopes for the STP rounds. Also for any design changes that staff considers to be material changes from the preliminary scope, staff will present those to the board as part of a design endorsement for approval. Regarding swapping of segment order within the program, staff does not recommend the board allow the segment order to be altered even within the same district outside of the formal periodic reevaluation of the segments based on the established scoring criteria. And lastly, regarding swapping funds out of the STP,

[03:17:50] staff does not recommend the board allow segments to be defunded or used to fund or accelerate capital projects outside of STP. Staff welcomes any discussion or confirmation from the board on these policy areas so can you tell us why because is that a new policy is that a new position for staff i've never heard that before can you just give us a reason why you don't think swapping is a great idea so they're and i'll defer to dtci for additional details but the board does have a criteria for how the projects get in a methodology for how they get scored and prioritized within the program and so um just recommending that they continue to flow into the cip based on that

[03:18:29] prioritization okay thank you that concludes my presentation we can take any questions all right thank you very much thank you very much supervisors um especially uh all the tluck members who were not part of finance do you have questions i only see one light on right now mr saints well i guess i'll actually because it's based off of um some of the mode well i'll wait because it's based on on some of the motions that are going to be made and then have questions regarding those motions

[03:19:06] so I'll just I'll wait till then I think that's more appropriate. You finished now? You good? You good? Okay Mr. Letourneau. All right back to that last item so I think the reason why that's happening is because there's no other way to get some of these things funded because we have a sidewalks and trails program and we have an intersection improvement program but we don't really have anything for things that sort of fall in between those things even if they're pedestrian oriented or they're sidewalk and trail oriented they won't fall on that because there might be a corridor

[03:19:41] study or something like that that's showing needs so would it be possible in theory and I'm not sure who I'm asking this to for the board not for this budget don't worry for the board to have a discussion through this coming year of some type of additional pot of money would have to come out of something else i know it doesn't just fall you know fall from trees to to address some of these corridor studies and some of these other issues that come up for safety situations that we identify

[03:20:17] we have a bmi we have a recommendation but they don't fit within the existing criteria of the iip or the sidewalk and trail program yes we can do that okay we would just need to understand we we'd have to come back with some scenarios and understand from the board yeah how do you want to size that and then how do you want to collect that data and information you know so for example is that something we collect when uh ddc and omb meet with uh board offices in kind of that late summer time frame and then we come back with a size a pot that gets applied or how does that we'd

[03:20:53] have to talk with finance and the board as to how that oh absolutely and i don't even know what the answers are but just to give an example like what I'm talking about so this this destiny project that I keep talking about that there's what that does is it adds crosswalks to a area where there's low visibility and there's constant problems with cars and pedestrians and it doesn't qualify for the sidewalk and trails program because it's not adding sidewalks and trails and it doesn't qualify for an intersection improvement program because it's not really about the intersections but yet I have a board approved study that from Kim Lee Horn saying this is a real issue and this is what our recommendation is and it's three million dollars and I don't know what to do with

[03:21:32] it so like I'm probably the reason why you all made that last slide because I've started playing around with trying to swap sidewalk and trails programs but I don't know what else to do because that's the only pot of money that I have to be able to do this or else I'm waiting it's not in the CIP that three million dollar project I'm waiting seven years so it's just kind of crazy and I'm not the only one like I'm just giving that example but I'm sure you all have this so what i'm trying to get at so maybe as part of a budget development process for fy28 god um we we take a look at that mr sanes oh you turned your light off i'm sorry mr crony um thank you

[03:22:09] chair randall so i thought um so we are doing the safe passages to school which has crosswalks but that's within school zones you know one mile of a school um i thought we were looking at a crosswalk program as well we are looking at developing a crosswalk program that will working with OMB provide money in a future fund uh CIP development so maybe we will come back to you with how to go the way to get it done yeah I don't support um you know taking segments out of the STP

[03:22:48] to use for other other projects I think that's number three swapping and funding out of STP But I think a crosswalk program would help, I think, resolve maybe some of these projects that are challenging to find a home and also help prioritize, you know, those projects as well.

[03:23:11] Because I really like the data-driven methodology that DTIC created for the IIP and the STP. I think it's really, really helpful, so we're not making ad hoc decisions, so we are consistent. So I really appreciate that.

[03:23:26] So I'm glad you said you're going to develop something for crosswalks countywide, right? Yeah, thank you. Mr. Hempstead, you want something? If I may, ma'am, I just want to be outside of the board member's time. Yeah, you are. I wanted to just address Supervisor LeTourneau's statement.

[03:23:46] He is not the only office that we get motions or requested motions to do offsets against the IIP and the SDP project. It came we got following the first or second cip meeting with the finance committee we received from a majority of the offices motions and requested motions to change the prioritization of the iip or the sdp to address other projects that are within those districts which was kind of opposite

[03:24:20] the commentary that occurred at the first cip meeting at finance which was actually a request to us to draft motions to to say that they couldn't that the board couldn't do that so because we got motions on both sides of that issue immediately following those that set of finance committee meetings we put it into the item because we do need clarity on how on are we strictly following iip and stp prioritizations or are those just guidance and then the board

[03:24:52] is free to request motions that offset for projects that are not in or much lower prioritized than what the program is providing. Okay. Ms. Bricksman. Thank you, Madam Chair. So on the, there's one motion up here that would remove the Smith Switch WNOD connector project from the sidewalk and trails program and add the Ashburn Village Boulevard improvements project. And it's my understanding that staff is supportive of that one because the smith switch is being taken care of

[03:25:31] in a different project but i guess my question is the ashburn village boulevard improvements project does that are they kind of equal in priority in the programs yes ashburn village is the next one in priority order excellent okay that makes that one easy thank you um and then on the town of middleburg south madison street safety and connectivity improvements um was that something that was considered as a town request that that we analyzed and decided not to put in the budget

[03:26:06] or is this something new it was submitted as part of the town's project and it was not funded and it was not funded so we decided it shouldn't be a priority i guess yeah okay okay um and i think those might be all of my questions but i guess it sounds can i get an opinion on this maybe um i i i like corridor studies honestly i think that they look holistically at an area

[03:26:41] many miles of road um at some of the challenges on many miles of road in a corridor and comes up with recommendations and in some ways I think looking at something as a corridor could be more efficient than doing the one-off and two-off and three-offs of the the the sidewalks and trails connectivity and the intersection improvements. I understand and I like that we have things prioritized don't get me wrong I like that I think that's a good rule of thumb to follow

[03:27:18] i think it's good guidance but what's your opinion on corridor studies i guess like i find them to be valuable and i i would not want to get rid of them staff from dtci also supports the the from a technical perspective a corridor study and when you look at for instance uh route 15 individually some of the roundabouts may be ranked separately but as a corridor they need to function together specifically at Route 50 and the three that work there together so we do have that built into the motion of staff coming back with technical guidance and

[03:27:57] requests for information to the board and direction when that will be the case to still allow for that to still offer corridor studies or a reason for something not to be stacked into the IIP STP we don't anticipate being the majority of cases though it seems like a handle a small handful okay thank you Ms. Glass. Thank you, Madam Chair. I would have to agree with Supervisor Letourne on what he was saying. I've been pushing to get a crosswalk construction program where there are certain

[03:28:32] areas, you know, it's listed on a future projects list. You know, we could have a pot of money for that. So when our constituents come in and ask for crosswalks that we'll be able to fund those, I'm sure, you know, we have to go through the process, of course, but to have that pot of money for that instead of waiting for a long time to get those done.

[03:28:55] Thank you, Madam Chair. Thank you. Mr. Kirshner. So I want to make sure I understood this. You're suggesting that, can you repeat what you just said? Because I agree with Supervisor Briskman in terms of the corridor studies. I mean, you look at this, I mean, you brought 15 as an example, and I think we're going to have a motion here after a long multiple-year corridor study to suddenly remove a roundabout that was studied as part of the process.

[03:29:22] So you're saying that in terms of looking at corridors, it will be recommended, they will kind of rule the day or no? I mean, can you rephrase that? I want to make sure I understand it. Certainly. In some instances where staff has looked at the corridor and that for a technical reason, more than one intersection improvement is necessary, we would recommend they not be slated as one-offs back in the ranking of the program.

[03:29:46] We would come to the board and recommend that in those cases we ask that they be done as a corridor, constructed as a corridor. There's another example on Route 7 where there are five together. They make sense to free up the reduced level of congestion, increased level of service by doing them all.

[03:30:03] But on a standalone basis, they may not rank all high enough to go in order of the IIP. So when it makes, I'd say as a rule, we're proposing that they go into the SDP and IIP, which is established in criteria, but there may be cases where the corridor will have a technical recommendation from staff to do at once.

[03:30:24] Are you suggesting those that are already in the CIP go back into the program, be looked at, or going forward? If I could clarify, I think we are talking about a motion that has not been offered yet, so I just want to make sure that that's clear.

[03:30:43] And, and potentially that if that motion were to be offered, it would direct staff to come back with a fuller analysis. So I think we might be a little premature. Yes. Fair enough. Thank you, Mr. Turner, Vice Chair Turner. Thank you, Madam Chair. Um, um, okay. Uh, let me just dive in here. Can anybody confirm for me that Ashburn Road started out as a corridor study and was broken apart into its individual IIP STP pieces?

[03:31:17] and stop being a corridor study we don't have the answer right now okay um rachel if you can hear me can you text me because she will know um i i we don't have a lot of these projects in ashburn district so i will confess and i'm not all that up on what's going on here when i heard that what can happen is a board of supervisor can ask for a corridor study the quarter study is complete and all elements of that corridor study, then preempt the STP and IIP. That really sat badly with me.

[03:31:54] There's no point in having a priority program like STP and IIP if we can periodically just arbitrarily declare corridor studies and pull pieces out of order and priority because they're in a corridor study. That's an easily manipulated tool, and it is jumping the line, and I don't like that. If we're going to have a corridor study, fine, but each piece of, and I like the holistic idea of looking at a corridor for the proper solution, but each individual element within that corridor study, in my judgment, ought to retain its priority and not get done until they come up in that priority.

[03:32:26] It does beg the problem of, okay, if you move the intersections to the IIP and the sidewalks and trails to the SDP, you're left with the crosswalks in the corridor study, and what do you do? I like the notion of developing a crosswalk list. That would be good if we could do that. Would the criteria be roughly similar to the Intersection Improvement Program, or would they be radically different criteria for a crosswalk list?

[03:32:49] Do we know? I think we're still developing the program. Okay. I think it's really important, just philosophically, that the STP and IEP program become sacrosanct. That's a lot of analysis that goes into those elements to prioritize where they should fall, And I think that should not be obviated by the creation of a corridor study.

[03:33:13] That may be pie in the sky, and that may be an unachievable theoretical solution, because I do like the notion of a corridor study that looks holistically at an entire corridor and says this is the ideal condition for this corridor. I just don't want to use it as a lever to pull out the priorities of the STP and the IAP.

[03:33:29] Thank you. C-I-P, yeah. No. No. Nope. Ms. Bricksman, as finance chair, we can do this a couple of different ways. We can go to the main motion in the package, which has some things in there that I don't think you motions you don't want to make.

[03:33:51] And you can adjust that motion, how it how it you can adjust that motion. We can go to the motions on the dais, have those discussions, and then we can make a motion that reads as amended by the discussions we just had, which may be an easier way to do that.

[03:34:10] I think doing these motions first and then as amended. Okay, all right, that's fine. So supervisors, I'm sorry? I just want to make sure staff was okay with that. Is that okay? Yeah, yeah, yeah, yeah. So supervisors, we'll do that. We will do the motions on the dais because, you know, there are some things in this motion that the finance share doesn't want to have there.

[03:34:31] It doesn't make any sense to have her make a motion but only make half the motion. So we do the motion on the day as first, and then when she makes a final motion, we should read it as amended.

[03:34:46] That's the best way to do that. So if you have a motion on the CIP discussion and you want to make it, please turn your light on. I don't know who came on first. I'll go to Ms. Glass first. Thank you, Madam Chair.

[03:35:02] I move the Board of Supervisors remove the Smith Switch W&OD Connector Project from the sidewalk and trails program prioritize projects table and add the ashburn village boulevard improvement program project motion made second by miss brinkman discussion on the motion miss glass thank you madam chair after consulting with staff i'm removing the smith switch road connector project from the prioritize sidewalk and trails list because it's already incorporated in the

[03:35:37] the smith switch road project we funded in the end of 2024 the project will be replaced not swapped with what i've told what i've been told is the next rank segments of sidewalks and that's the ashburn village boulevard at the dulles greenway i believe these ashburn village boulevard missing links to be the last unaccounted for missing links within the half mile of the ashburn metro of the metro station thank you madam chair thank you any further discussion on this motion

[03:36:12] on this motion mr crony mr turner nobody on this motion okay motion was made by um supervisor glass and enthusiastically seconded by supervisor bricksman um all in favor say hi any opposed that motion motion will pass 9-0 if you have other motions miss mr crony okay I will do the town of Middleburg one?

[03:36:43] Sure. Okay. I move that the Board of Supervisors direct staff to include a motion as part of the FY 2027 appropriations resolution item to send 1.5 for the town of Middleburg, South Madison Street, safety and connectivity improvements to the FY 2026 year-end general fund balance discussion for consideration.

[03:37:09] For the purpose of discussion, I will second this for Mr. Crony. Okay. Thank you, Chair Randall. So the last time the town of Middleburg received CIP funding from Loudoun was in FY 2023 for the town hall project. They received \$500,000. Prior to that, the last time Middleburg received CIP funding was the FY 2028 adopted budget for crosswalk and sidewalk projects.

[03:37:35] Middleburg is self-sustaining with their water and wastewater system. so they charge 3% every year to residents, so they are self-sustaining with that. Their rates do go up to pay for some of the improvements that are needed.

[03:37:51] This one is really about making a sidewalk, connecting a missing link of a sidewalk at the intersection of South Madison Street and West Federal Street, and adding American with Disabilities Act compliant ramps.

[03:38:10] Ultimately, this project addresses disparities by removing barriers to those with mobility issues. Middleburg lodging properties will have contributed over 4.3 million in NVTAs taxes from FY21 to FY26.

[03:38:30] And to date, none of these funds have been used directly to support pedestrian or transportation improvements to the town of Middleburg. So I'm requesting that the county fund this project, they are looking for construction funds of 1.5 million.

[03:38:46] They are putting in 750,000 for design and land acquisition. Middleburg brings in visitors all over the county and they really contribute with their TOT taxes And I think it's a worthwhile project to help with accessibility, pedestrian accessibility, and ADA improvements.

[03:39:16] So I hope that you'll consider it. Again, this is just going to the fund balance for discussion. So it's not funding it. It's just going to the fund balance for a discussion of the FY2026 fund balance.

[03:39:34] I'm not sure. I mean, Ms. Bricksman? Thank you, Madam Chair. Was this project, are these intersections or sidewalks and trails ranked?

[03:39:50] Whatever the improvements would be here, are they ranked in our IIP or STP program? They are not. We don't rank their program. Because they're inside the town. Yeah, this is a town project. Okay, so we don't know how they might rank in priority to some of the other projects that people want to get done.

[03:40:11] That's correct. We, some of these were, they are existing sidewalks, though, so it's not something that would be included anyway. It's not a missing link. Oh, they're existing. Okay. Okay. And I'm sorry, if I might address the supervisor to Crony.

[03:40:28] Sure. You said some numbers there that I didn't quite catch. Is the whole project 1.5 million, or is there, they're giving, or not giving there, they've allocated 700 and some thousand. 750. 50 and they're asking 1.5 from the county are they getting money from anything else no okay this is this is the 30 mvta funding that they're asking for that that would that we do give to the towns every so often so okay and okay um all right thank you those are all the questions i have thank

[03:41:02] you point of um clarification mvta i mean uh middleburg is not an mvta town that we see it's percival it's leedsburg because it's based on population so you keep saying the mvta funds that we give to the towns that wouldn't be middleburg i'm a little confused but i'm not saying i i'm not saying no in fact i'm likely to vote yes on this but i'm just help me understand what you're saying right there. Put your light back on. They're requesting the, you know, I think they

[03:41:41] do, I mean, I thought the towns did get kind of the 30 percent. Well, the towns do based on population. Middleburg does not. The only towns in Loudoun that do is Percival. They get straight from MBTA. It's Percival and Leesburg. What you might be saying, with due respect, is of the 30 percent Loudoun receives, can they get some of that, of those funds, because Middleburg is not.

[03:42:05] Middleburg is not, quote, unquote, entitled to any NVT A money on their own, except for what you're saying that. We're requesting county designation, yes, of NVT A 30% funds. Okay. Yeah, that's correct. Thank you for the clarification. Megan, you wanted to say something?

[03:42:21] I do have a clarification. If the intended revenue to support this expenditure is recommended as NVT A 30%, that would not be something that we would deal with at the year-end fund balance. would just year-end fund balance is just our own general fund excess revenue and so that the motion that has been offered um suggests the revenue be general fund balance versus nvta 30 that would be in as chair of nvta that would be the the motion you made is the appropriate way to have the discussion okay so we're going to take out the nvta part of this discussion okay okay in the

[03:42:59] motion by the way oh it was not in the motion you were correct thank you okay um mr latourno all right so this was submitted as one of the town projects but it wasn't recommended for funding in the budget can you elaborate a little bit on that process so these come to me in the end the we come to the finance committee in october and we try to gauge from the finance committee what the committee thinks we should be funding and so what is reflected in the recommended budget or particularly the cip with respect to towns is my interpretation of the guidance that i received

[03:43:37] around funding for town projects so the way i interpreted the guidance was primarily to address health and safety or welfare issues and so that's where we placed the majority of the funding that we had available right okay i mean look i'm not opposed to giving middleberg some money to help with this project but this is like a classic cut the line because i have projects that i've been waiting longer than i've ever even heard of this that aren't going to get funded right i just talked about one so i could send those to fund balance too and then we could all do that and we could all day long send projects to fund balance and then when we get to fund

[03:44:17] balance have some big food fight but i don't i don't think that that's really the right process I think we should probably engage with the town and see what we can do to help them. But they're going to have to wait like everybody else does, just not conceiving a project and then asking the board to get money immediately.

[03:44:33] I mean, I'd love for that to be our process and our system, but it's not. You know, we all have to wait sometimes six, seven, eight, ten years for these things. So I'm happy to put this on a list and plan on funding it. But I don't know that I want to just cut the line and say to my own constituents, sorry, Middleburg had a request.

[03:44:54] You know, we're going to just put that ahead of yours. It's just not a, you know, look, we all could do that. We're district supervisors. That's what we're supposed to do. So Supervisor Crony is doing what you probably should be doing. But that is why the body as a whole sometimes has to sort of take a step back and have the process and all that kind of stuff.

[03:45:12] And, you know, it's a fine line sometimes. But if it's a very specific project like this that I don't think there's been a long-term engagement with the county on, I think it's a relatively recent request, then I don't feel the pressure to immediately fund it.

[03:45:28] I think we should plan on funding it, if that makes sense. Thank you. Mr. Sains. Thank you. The \$750,000, correct me if I'm wrong, but Middleburg has that mark for fiscal year 28. Is that correct or no? I believe that's funding they have allocated right now for the design.

[03:45:47] and they are asking for the 1.5 from us for FY28 for the construction. So again, there is no, to Supervisor LeTerno's point, there is no urgency. If they're allocating their funding not until fiscal year 28, then we can wait and move this to fiscal year 28 as well to put the 1.5 in and not do fund balance.

[03:46:10] That would be my suggestion. So I'm kind of to Supervisor LeTerno's point exactly. Yes, we're supposed to advocate for, you know, things in your district, and we all could be bringing things for fund balance and whatnot. But again, like, say if they were asking for allocating their 750 for fiscal year 27, okay, maybe let's have that conversation, but they're allocating it for 28.

[03:46:33] So I think we can wait. Mr. Crony, do you want to go back to them and have that discussion, or do you want to keep on with this motion right now? I'm happy to do a friendly amendment to send it to the 28. Well, that doesn't, we don't do that.

[03:46:50] Well, it's a priority, no? We don't do that. But I think what he's saying is we like to go back and talk to them and say since their money's not coming up to 28, how about we talk about this in 28 when all the money can come up together and have that discussion with the mayor and town council.

[03:47:06] I mean, I'm asking you do you want to. We can keep going with the motion if you want to. That's fine with me. I have a feeling you're not going to win this motion. I'm trying to kind of get you out of it. I've got to help you out here. Right. I mean, I can have the discussion, but I know this is not a new project.

[03:47:24] Okay, let me just say, would you like to pull the motion right now or table the motion or pull the motion until you have a discussion with Middleburg some more about this coming back next year? Yes, let's do that.

[03:47:40] You would. You'd like to pull your motion. Okay. You made the motion. second the motion i'm fine would you pull in the motion and we'd be happy to go with you to middleburg to have that discussion that's better than letting the motion fail to be quite honest okay that's right it is no i agree okay all right thank you so that motion's been pulled all right miss crowley would i can make a next motion yes okay so this one is about um the corridor i move that the board of supervisors direct staff to align all

improvements resulting from corridor studies listed in projects identified for future development and recommended improvements from

[03:48:18] active corridor studies that meet the appropriate criteria to either the sidewalk and trail program or the intersection improvement program. I further move that staff present to the board any improvements not aligned to the established criteria of the STP and IIP or such improvements STAP recommends to be considered outside of an established program to receive further direction.

[03:48:45] Again, for the purpose of discussion, because I told you I wanted to discuss it with you, I'm going to second this for discussion. Okay, thank you. So this is not to get rid of corridor studies. I think that was discussed earlier. This is about prioritizing segments of a corridor study that have an intersection, have an intersection or have a sidewalk and trail in our data-driven methodology.

[03:49:13] Otherwise, things are not put into a data-driven methodology, and we found that out with Route 15 South. Hogback Mountain is a three in the Intersection Improvement Program and Lime Kiln.

[03:49:29] That intersection is a two. So this will allow us to look at the stand-alone projects, looking at them in the ranking that is data-driven and prioritizing them against all other county-wide intersection improvement projects or sidewalk and trail projects.

[03:49:52] My motion would rank and prioritize them. So they are evaluated against all other county projects. Transportation projects make up a significant portion of our projects that appear in the projects identified for future development lists.

[03:50:09] Prioritization will help us make informed decisions about future investments. The PIFD list has increased in size and total dollar value since it was added to the CIP, but we have not given comprehensive guidance on how to prioritize those projects.

[03:50:26] And the list continues to grow year over year. So I will say that most corridor studies, the improvements are done separately. They're not done as a group of five. That's very, what you mentioned from Heather, that's unique.

[03:50:45] Most of them come up at different times in the CIP to be funded separately. So this allows us to put them into the ranking so that they can be prioritized and then put into the CIP for funding.

[03:51:01] I think corridor studies have value for sure because you're looking at a corridor and what improvements need to be made to the entire corridor. But I just think we have rankings that, you know, if it's a five, those need urgent attention.

[03:51:18] And I think those should be first to be funded in our IIP and the high ranking sidewalk trails should be funded too first because they're looking at pedestrian safety so this is just a way to make decisions that are data driven thank you thank you before i call on ms bricks but i do want everybody to look out at the audience because the audience right now is all of our senior staff who thought they were going to go first tonight ended up ended up not going first look at their

[03:51:49] faces. So as we go along with these discussions, just keep looking out there. Let's just keep looking out there. Okay, Ms. Bricksman. Thank you, Madam Chair. If I might ask staff a quick question. Sure. Do we have any rank five intersections that aren't being funded or that aren't being prioritized versus what might be a rank four rank three intersection i would have

[03:52:25] to check i'm fairly certain all of the fives are recommended that that's what i thought yeah so um so that that that falls a little bit flat with me um i i i'm not going to support the motion um i i feel as if after a number of years we were finally able to get to a conclusion that we should look at sidewalk and trails and missing links even as a package sometimes even if there's one that's ranked 320 and one that's ranked 15 that we decided it was more efficient to do what's in that area all at the same time

[03:53:04] and this to me is almost kind of going backward from that theory I I think that we should still do the corridor studies and still do the construction and design and all that of the corridor as a whole as much as we can. I think it's less piecemeal. I think it's less impactful on the community and the traffic if you can get some of this stuff done all together. And it just seems like it would be a lot less efficient to do what is proposed in this motion. I'm not opposed to perhaps when corridor studies come up

[03:53:43] that when staff gives us the report, we say, okay, this is intersection X, it is ranked number three, and this is intersection Y, and it's ranked number five, and this is intersection Z, and it's ranked number four, but we are proposing for efficiency's sake that we do it all together.

[03:54:02] I like the idea of knowing, but I also sort of like the flexibility as a board be able to say yes of course we think it's more efficient we agree with you it's more efficient to do this whole corridor together so i'm i also think that this might need a little bit more examination and and thoughtfulness before we kind of do this while we've all been thinking about budget stuff and all that i so anyway i'm not going to support the motion at this time thank you madam chair thank you jason i think you have class tomorrow go home yeah i can verify that spring break so what are you doing here for spring break

[03:54:41] oh yeah well this is your spring break enjoyment my gosh you can still go home if you want to though i'm fine okay you're good okay okay okay let's uh i'm stuck uh thank you madam chair um i really appreciate where supervisor tacrony is coming from and i i think this does deserve consideration but as um i mentioned to her when she did me the kindness of reaching out today

[03:55:14] i think this is such a big issue and such a change that i would rather take it up in another forum and hopefully we'll find another forum to take it up but i probably would not support it tonight but it is certainly something worth considering thank you and supervisor letourneau yeah i'm actually supportive of this because I think it gets to the issue that Vice Chair Turner was talking about which was the sort of the notion that things can jump because they were part of a quarter study and so I asked sort of a sarcastic question for those of you who weren't there at

[03:55:52] one of the finance work sessions and I said okay so if I have some things I'm trying to get done can I just get the board to approve a quarter study and then it'll just flow right into the CIP so I think my concern is if this motion doesn't pass I don't know what staff is supposed to do with these things. I think we create a lot of confusion when we deviate from the programs that we have. Now you just heard me advocate for creating a different program and it's not, no actually that it's consistent with this though to address these issues that are outside of the two programs that we have and it's not just crosswalks it's the program that I have is that will the particular project I have is vegetation and signage and traffic calming and all those

[03:56:31] things too but that corridor study also has an intersection in it that needs a a traffic light and the traffic light is a is a intersection is a three and so if the board had funded the corridor study then that that traffic light would get done now i didn't ask you to do that because i'm trying to be an honest broker over here and i knew it was a three i could have but i didn't because but no offense to anybody i don't know

if that's always been the practice so if you get a quarter study then it gets done so i think we have a process and i think all this motion is doing is saying for those things that clearly fit within our

[03:57:09] established program put them in the program and that to me shouldn't be controversial or really a deviation from what common sense would be over how we currently do this we have a program so if you have an intersection as part of a quarter study and it's already ranked then it should get done when the ranking dictates it gets done and then hopefully we can address some of the other things that usually in corridor studies because rarely are they only just about a traffic light or a sidewalk link. It's usually other stuff. That's the part we need to address. But we might be able to address it better if we're not constantly pulling things out and they end up

[03:57:47] in the CIP when they probably shouldn't be. So I think this is actually a very smart motion that we should pass. Thank you. Mr. Kirchner. Thank you, Madam Chair. Just two things. A point of clarification, Supervisor DeCrony mentioned rank three of the Hogback Mountain intersection, but I noticed in the staff packet that was incorrectly ranked. It actually should have been NA, right? Or was it level two? It should not have been included in the ranking, but it did come out as a rank two in the study, but it should have been an NA because it was already a project.

[03:58:19] All right, fair enough. I think you might have missed when that was said earlier this morning today. Yeah. Well, she said, but the staff packet said it should have been an NA. I understand. I just wanted to make that as a point of clarification because she brought it up as a rank three.

[03:58:34] It's not even that. So, secondly, this motion, I'm assuming when I asked you about the question about corridor improvements, that last line of the motion which says, or such improvements staff recommends to be considered outside the established program to receive further direction.

[03:58:53] Maybe that was Megan that said that. That's what you were referring to? Yes. Okay, thanks. good okay you were quick too mr saints thank you madam chair so let me get from staff's point of view with the motion that is on the table from supervisor to coney would that give you direction to go look at the corridor studies do your analysis and then come back with the ranking and then tell us okay yep these are what we want to do and move forward with it or would you guys go ahead and just move forward with it so pretty much i'm asking where you come back to us first

[03:59:26] present yes okay um when is the next plan presentation for the iip and stp the iip is coming to the finance committee soon it was already approved previously but it's an information item coming to discuss the new methodology sorry telec yes thank you it's coming to telec and the stp is going to be re-ranked in 2027. okay next year and then just out of curiosity do you know how many corridor studies there are that are out there that you guys have to go back through?

[04:00:05] We have it, but not here available tonight. Okay. All right. All right, so I'm going to throw out a friendly, see if it goes anywhere. So, Supervisor Coney, would you accept the friendly amendment of two direct staff to identify the projects first, then consider how these would move within the CIP from future projects into the STP and the IIP programs?

[04:00:31] The second part. I think we'll edit your second part to add that in. Could you just, could you say, could you say that, how about I further move it? Could you say it, yeah, because I'm not, yeah, I further move, right? Yeah, further move, and then it would be direct staff to identify the projects first, then consider how these would move within the CIP from future projects into the STP and the IIP programs.

[04:01:03] That's friendly. Yeah, name them so we know where they're at. Is it just naming the projects? Well, naming them, but also to identify and then to see where their potential would be ranked. Because my issue is with it is, say, if we already have things already ranked and they've been moving up slowly up the food chain, and then we do this, another project, and then here we come, oh, nope, we're going to add these on top of these that have already been working for a year or two, three years to bubble up to the top.

[04:01:31] Then we're adding these on top and pushing those back down to the bottom. That's kind of my issue. So with my friendly, my spirit of is have them do more analysis, identify the projects, see where they're ranked, and then come back to us with that information. Yes, Megan.

[04:01:56] Well, no, no, no. I know, I'm still trying to decide. I'm still trying to decide. No, no, no, no, no, no, no, no. Exactly. There you go. And you, before I, will Megan, are you going to say something that will help her make her decision?

[04:02:14] Mr. Croney, do you think you have some information that will help her make her decision on whether to accept as friendly? Yes. Okay. From what I'm understanding of Supervisor Sainz's suggested friendly amendment, I believe staff would intend to bring back and be fully transparent how we would address this motion.

[04:02:38] So regardless if it's in the motion or not, we would want the board to be fully aware how we execute that motion. Okay, thank you. Mr. Croney. Thank you. No, Mr. Croney. I will accept that. No, no, no, no. You will accept it differently.

[04:02:56] I accept it. And if you will accept it as a seconder, I'm happy to accept it too. Thank you, Chair Randall. Mr. Sains, do you have anything else? Mr. Turner. Thank you, Madam Chair, because we are now encroaching seriously on Maggie's late night walk time. I'm going to simply say, Supervisor Letourneau's comments, exclamation point.

[04:03:15] You associate yourself with Supervisor Letourneau's comments. Okay. Would you like a closing? You don't. Would you like a closing? No, I don't. You don't. I'll get in trouble. No. When you're ahead, just leave it there.

[04:03:32] All right. Supervisor Letourneau made the motion. I seconded the motion with a friendly for Mr. Saines. I don't feel able to say aye. Aye. Opposed? That motion will pass 9, I mean 8, 1. Sebastian Croni, you have one more motion. We have to do this quickly, Chair Randall, because Maggie has to be walked.

[04:03:56] It's true. Okay, so I move the Board of Supervisors rename the Route 15 Hogback Mountain Road roundabout project to Route 15 Hogback Mountain Road intersection improvements and change the scope of the project to turn lanes rather than a roundabout?

[04:04:15] I won't be supporting this, but I did tell you I'd let you talk about it. So I'll say yes, but I'm not going to support the motion. But if you'd like to, I'll second it so you can talk about it. Okay, so this motion is not removing or reallocating any money from this project.

[04:04:35] This motion is simply switching the project from a roundabout to turn lanes. The estimated cost from staff for turn lanes, I believe will be less than a roundabout. On this same corridor, the Braddock roundabout and Route 15 went from 14 million estimated in this study to now 47 million.

[04:05:00] So I do believe that the roundabout will be more than the turn lanes. We did have a process with this Route 15 safety and operations study. The consultant had two alternatives, a roundabout and a

turn lane that both showed safety improvements at this intersection.

[04:05:26] I think to save taxpayer money, we should be doing turn lanes. If you notice, the amount of traffic that comes from Hogback Mountain is 2.4%, and the amount from Route 15 is 97.6%.

[04:05:42] So I believe it doesn't merit a roundabout that we can do just some turn lanes and it will still take care of the safety improvement that is needed at this intersection. I will say that I think the roundabout will require significantly more right-of-way.

[04:06:01] I know staff said that that may not be the case, But one theme that came out of the stakeholders meetings for two years was that adding turn lanes at certain locations is reasonable on this corridor.

[04:06:16] This corridor is not as heavily trafficked as the Route 15 North corridor. This is a different corridor than Route 15 North. We do not have Maryland traffic on this corridor. So I think doing a turn lanes would save us some county taxpayer money.

[04:06:33] Thank you. Thank you. Mr. Kirshner. Thank you. So first of all, this is in both Catoctin and Little River. And I think it probably, I would just encourage my board members when you have a project like this, unless it's highly egregious for some reason, that both supervisors should be in agreement.

[04:06:51] And I am not in agreement with this whatsoever. I mean, I think you could make arguments both ways, but the arguments are overwhelmingly against this motion. And let me please explain. First of all, this corridor was studied for several years. There were 24 entities, all up and down 15, homeowners associations, et cetera, and staff who worked on this.

[04:07:11] I was actively involved long before Supervisor Tricroni was on the board. I think it is – I'm trying to find the word, but I think it is irresponsible to say, well, staff has come back and said the turn lanes will cost \$13.8 million and the roundabout will cost \$4.3 million according to what staff has provided.

[04:07:30] I'm not saying there may or may not be a difference in the future, but those are the hard numbers that we have right now. It's a difference of \$500,000 after a two-year study of a corridor that says, oh, we're going to save the taxpayer money. What are we doing? This is a – I think anyone who had a project in their district who spent two years participated actively in the focus group, staff actively participated.

[04:07:55] And if you – I have the study right here. If anyone wants to see it, it is clear the benefits are drastically better for a roundabout. Now, you can make a number of arguments, but I'll just read a couple of these. The roundabout they found during the process dramatically improves level of service for Hogback Mountain, Church Road, reduces speed, which improves safety and reduces crash severity, is safer alternative to left turns across heavy traffic, creates a traffic calming effect in high crash areas and provides access to the church and other rural businesses, including the winery that exists.

[04:08:30] And the numbers that were listed don't really take into account the weekends, which is when you have the heaviest traffic for those coming out of the businesses and whatnot. So I think this has not been looked at thoroughly. I think originally Supervisor Troni wanted to take this money out and put it into another project in the district.

[04:08:52] She's not making that motion now, I think, wisely. But I think to attack a project that dozens, if not hundreds of people, have put in and saying it's going to save taxpayer money when literally the dollar figure that we have that staff's given us is only \$500 difference is somewhat irresponsible, and this should not even be entertained.

[04:09:11] Thank you. Is it \$500 difference? \$500,000. \$500,000 difference. You said \$500. It's \$13.8 million versus \$14.2 or \$3 million. So about half a million dollars. At the moment. Okay. At the moment. Okay. Thank you. So it's way too premature to even suggest this.

[04:09:28] Thank you. Mr. Letourneau. Okay, first question for staff is, do we have to decide this in this budget year? Because the funding is actually not until FY28 for any of this, right? That's correct.

[04:09:43] Okay. So if you go back to the 2022 study, the cost estimate for the roundabout at Hogman Mountain Road in that study was \$5.8 million. So it's now, three or four years later, it's now \$14 million.

[04:09:59] So regardless of what option we pick, I think we're right to give new scrutiny to a project when the price on it triples in three years and nothing's even happened in that period of time. That's number one. Number two, I asked this question before, but I have never heard of a roundabout project in which traffic was this unequally distributed, where 97% of the traffic is coming from one side and 2% from the other side.

[04:10:23] I'm not crazy that that's not a normal practice, right? I mean, I've had plenty of conversations with VDOT engineers over the years about roundabouts, and I've never heard of that. So that 2% is just what's coming off Hogback Mountain? Right. Okay.

[04:10:39] But it's not normal to have a roundabout in which only 2% of the traffic is coming from one direction. Isn't that right? I couldn't say. Have you ever heard of one? I couldn't say. It's just not my area of expertise. Okay.

[04:10:55] I bet somebody there knows. I had this conversation with Lou Moserag. It's not there anymore. but it's highly unusual highly unusual I mean I've done three or four roundabouts I know so that's why I didn't support this in the first place like all those years ago now I'm sensitive I don't want to sit here and have a dispute between two supervisors who you know and I get what Supervisor Kirscher's saying but in fairness to Supervisor Crony she wasn't on the board then and it's also her district so she has a different point of view so if we don't have to actually make decision this year I'd probably rather this was done in FY22 I don't know how hard it would be

[04:11:32] just to look at this particular intersection again not the whole corridor study but I wouldn't I would I would think given that this this study was again off by already like hundreds of percents in the cost estimates that maybe it wasn't the greatest study in the first place wasn't done by anybody currently on staff I have found that a fresh approach sometimes is helpful I'm not sure if the turn lane project is a good project either to be honest with you so i wouldn't mind just taking some time on this and trying to figure it out we leave it as it is perhaps in the budget this year but then we have like an actual real discussion instead of just this is what the study from four

[04:12:11] years ago said you know which none of us most of us apparently i remember it but a lot of us probably don't remember that specifically so that's kind of where i'm at mr sains thank you Thank you, Madam Chair. So, Staff, does Supervisor Taconi's motion, where it reads, rename your Route 15 Hotback Mountain Road roundabout project to Route 15 Hotback Mountain Road intersection improvement, does

that take it out of the CIP and put it into the intersection improvement program? No. Okay, so it keeps it in there, but it gets rid of the roundabouts and turns

[04:12:48] it to turn lanes? Yes. Okay. And again, for the record, we're still not aligned to either one of you. I wish you guys were aligned on this that is that's why it's not funny but it's the most expressive face it's just since what Matt supervisor wait wait you're in his time. Thank you. So, okay, so going back to supervisor, if we table this,

[04:13:28] nothing happens, or it stays in where it's at, and then we deliberate again next year? Well, you wouldn't table it, because you can't table it to win. You have to actually just pull the motion. You have to pull the motion and not table it. But if she says she wants to pull the motion, she can pull the motion with some instructions. So let me ask you, within my 1.30, if Supervisor 20 was to pull the motion and nothing happens, this just sits in the CIP for another, it just sits where it's at currently, is that correct?

[04:14:02] Correct. The funding would stay where it is right now. Okay. Well, yeah, I don't want to take the funding. Nobody's trying to take the funding. Well, we settled that issue at the finance work session. All right, well, we'll see where this goes. You're rambling. You're just rambling right now.

[04:14:18] Would you like to pull the motion? Would you like, put your mic on. Yes, I would like to pull the motion with direction to study this intersection for the roundabout or the turn lanes, to restudy it.

[04:14:41] Well, to restudy it, that's got to actually be a motion. I think that is what's needed. Mr. Saints, so if she wanted to pull the motion, because it doesn't need to be discussed until next year anyway, what would need to happen so there would be a new look at what's there right now, so that when we come back in 28, we have fresh information?

[04:15:21] I think you need a motion. Yes, I think we need a motion. that I would say that the instruction could be that staff would bring back an analysis and recommendation once we kick off the FY28 budget process which will be here in July. Would you like to make a motion on that? Would you like to make a motion? Okay yeah I move that the board of supervisors wait so she's pulled the motion that was on the table I seconded the motion I'm happy

[04:15:53] to agree to that i mean the board of supervisors um direct staff to conduct an analysis to conduct an analysis on the route 15 hogback mountain roundabout project as part of the fy 2028 budget development second thank you okay i don't care all right did you like to discuss that motion no no we'd like to discuss this motion no great motion thank you closing no all in favor please

[04:16:30] say aye aye any opposed that that motion will pass that motion will pass 8-1 that motion will pass 8-1 mr vice chair turner you have a motion yes madam chair i move the board of supervisors send 500 000 planning funds for the eastern loudon library project to the fy 26 year-end general fund balance discussion for consideration. Most of the motion made and seconded the first by the Supervisor Sains. He was faster. Discussion on the motion? Yeah, thank you Madam Chair. The CNA, the capital needs, yeah capital needs assessment has triggered an additional 20,000 square feet in the Ashburn

[04:17:09] Library and 40,000 square feet in the Eastern, in the Ashburn Planning District, which comprises Ashburn, Broad Run District, half of Sterling District and a little piece of Algonquian District. Currently, the Eastern Library project is in fiscal year 32 for \$2.3 million.

[04:17:28] This money would simply come out of this year's fund balance, be entered into this year's fund balance discussion to look at options for an Eastern Loudoun library. This would not touch the fiscal year 32, \$2.3 million that's already in the CIP.

[04:17:44] It simply says, let's study what the options are so we can refine our efforts. Thank you. Discussion on the motion. Ms. Glass. I would support this motion because as Vice Chair Turner stated, the Ashburn Library that we have now, you can't make it, it can't get any bigger.

[04:18:06] So we're going to have to find another place to build a library in the eastern part of Loudoun. Thank you, Madam Chair. Okay, that was going to be my question. That was going to be my question. You just answered my question. Just answered my question. Anybody else? Motion made by Supervisor Turner, seconded by Supervisor Sains.

[04:18:22] All right, please say aye. Aye. Any opposed? That motion will pass 9-0. I don't think there's any other motions for the CIP on the dais. I'm going to go to the chair of finance to make a motion. I don't know why I closed my computer when I knew I had to make the motion.

[04:18:52] Sorry. Ah, ah, ah. Oh, I have to get my kid.

[04:19:07] Okay, I move the recommendation of the Finance, Government, Operations, and Economic Development Committee that the Board of Supervisors adopt the FY 2027 to FY 2032 proposed capital improvement program as amended by the committee on March 4, 2026, and amended by the full board on March 9, 2026, Capital Asset Preservation Program Fund, Major Equipment Replacement Fund, Metro Garages Fund, Public Facilities Fund, and Transportation District Fund.

[04:19:37] I further move the recommendation of the Finance, Government, Operations, and Economic Development Committee that the Board of Supervisors direct staff to include a motion as part of the FY 2027 Appropriations Resolution Item to send \$500,000 in planning funds for the Southern Service Center capital project to the FY 2026 year-end general fund balance discussion for consideration.

[04:20:01] And I further move the recommendation of the Finance, Government, Operations, and Economic Development Committee that the Board of Supervisors direct staff to include a motion as part of the FY 2027 Appropriations Resolution Item to send \$120,000 for the Town of Hillsboro Old Stone School renovation and \$308,000 for the local match of the town of Lovettsville second water tower projects to the FY2026 year-end general fund balance discussion for consideration.

[04:20:36] Motion's made and seconded by Supervisor Sane. Discussion on the motion. Ms. Briggsman. Thank you, Madam Chair. So thank you, staff, for working so hard on the CIP. And at the work sessions, we appreciate you guys working on all the draft motions.

[04:20:54] I think that, you know, it's always tough when we have to prioritize certain things. And I know that you guys get a lot of pressure from board members, probably including myself sometimes, to get to help us accelerate things in the CIP. Just please know that it's coming from, you know, a place of trying to serve our constituents.

[04:21:16] And so we appreciate that. I appreciate all my colleagues going through the CIP and working on it as well. And with that, Madam Chair, I will conclude. I would say, oh, Mrs. Kirshner. I just want to say, wake up, senior staff.

[04:21:32] We're almost done. Thanks for being here. I would say that the CIP budget is a time of year where I'm always thrilled to be the chair of the county. But it's a lot to be the chair of the county because it's a whole county until we get to the CIP.

[04:21:49] And I am so grateful I am the chair of the county and not a district supervisor. And I really feel for my colleagues who really have to kind of go into the ring and battle sometime for these monies for their districts. And they do it, as Mitchell DeTerno said, because they're supposed to for their districts.

[04:22:05] And I am lucky enough to have every single person as my constituent. And so I don't have to kind of do this battle. I can kind of step back a little bit. But I will say to all of you, you all do a great job fighting for your constituents. and it looks really hard, so great job, everybody.

[04:22:22] Should I get closing? - No, no, thank you, Madam Chair. - All right, Supervisor Brickspin made the motion, Supervisor Sane second the motion. I'm perfectly say aye. - Aye. - Any opposed? That motion will pass 9-0. Everybody go home. We'll see you on Thursday.

[04:22:38] - See you tomorrow.



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